

**CHAPTER xxxi.**

An Act to confirm certain Provisional Orders made by the Board of Trade under the General Pier and Harbour Act 1861 relating to Bridport Sandown Scarborough and Shoreham. A.D. 1918.
—
[30th July 1918.]

WHEREAS a Provisional Order made by the Board of Trade under the General Pier and Harbour Act 1861 is not of any validity or force whatever until the confirmation thereof by Act of Parliament: 24 & 25 Vict.
c. 45.

And whereas it is expedient that the several Provisional Orders made by the Board of Trade under the said Act and set out in the schedule to this Act be confirmed by Act of Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The several Orders as amended and set out in the schedule to this Act shall be and the same are hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full validity and force. Confirmation
of Orders in
schedule.

2. This Act may be cited as the Pier and Harbour Orders Confirmation Act 1918. Short title.

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SCHEDULE of Orders.

1. BRIDPORT.—Reconstitution of Harbour Commission &c.
2. SANDOWN.—Transfer of pier to Urban District Council.
3. SCARBOROUGH.—Increase of harbour rates.
4. SHOREHAM.—Power to Local Authorities to lend money to
Harbour Trustees.

BRIDPORT HARBOUR.

A.D. 1918.

Order to reconstitute the Bridport Harbour Commissioners and to authorise the raising of Moneys for the Repair and Maintenance of the Harbour of Bridport in the County of Dorset.

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Preliminary.

1. This Order may be cited as the Bridport Harbour Order 1918. Short title.

2. This Order shall come into operation upon the day when the Act confirming this Order is passed and that day is in this Order referred to as "the commencement of this Order." Commence-
ment of
Order.

3.—(1) In this Order unless the context otherwise requires—

Interpreta-
tion.

"The Harbours Clauses Act 1847" means the Harbours Docks and Piers Clauses Act 1847;

"The Commissioners" mean the Commissioners of the harbour as reconstituted by this Order;

"The clerk" means the clerk for the time being to the Commissioners;

"The office" means the office for the time being of the Commissioners;

"The Act" means the Act 4 Geo. 4. c. 19;

"The old Commissioners" mean the Commissioners under the Act as existing at the commencement of this Order;

"The harbour" means Bridport Harbour in the county of Dorset as comprised within the limits of this Order;

"The harbour undertaking" means and includes the harbour and the lands property and conveniences held therewith and the right to levy rates and all other rights conferred on or vested in the Commissioners by the Act and this Order and the entire undertaking of the Commissioners in connexion with the harbour;

"The borough" means the borough of Bridport;

"The borough fund" and "the borough rate" mean respectively the borough fund and the borough rate of the borough;

"The Corporation" means the mayor aldermen and burgesses of the borough;

"The harbour revenue" means and includes the rates rents and other moneys and receipts which may be taken and

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received by way of income from or in respect of the harbour undertaking under the authority of the Act and this Order;

“The appointed day” means the twenty-fifth day of March one thousand nine hundred and nineteen.

(2) In the application to this Order of the Harbours Clauses Act 1847 the expressions “packet boat or Post Office packet” and “Post Office bag of letters” used in that Act shall mean respectively a vessel employed by or under the Post Office or the Admiralty for the conveyance under contract of postal packets as defined by the Post Office Act 1908 and a mail bag as defined by the same Act. Provided that nothing in the Harbours Clauses Act 1847 or in this Order shall extend to exempt from rates or duties any such vessel as aforesaid if she also conveys passengers or goods for hire.

Undertakers.

Undertakers.

4. The Commissioners shall be the undertakers for carrying the Act and this Order into execution.

Incorporation of Commissioners Clauses Act 1847.

5. The Commissioners Clauses Act 1847 is hereby incorporated with this Order except so much thereof as relates to the qualification of Commissioners the election and rotation of the Commissioners where the Commissioners are to be elected by the ratepayers and other like class of electors and the accounts to be kept by the Commissioners and except as expressly varied by this Order.

Reconstitution of Commissioners.

Rights of old Commissioners.

6. The old Commissioners shall subject to the provisions of this Order retain their office and all property interests rights powers and authorities of or vested in or exerciseable by the old Commissioners until the appointed day on which day save so far as is otherwise provided by this Order they shall go out of office but any of the old Commissioners shall if otherwise qualified be eligible for appointment or co-option as a Commissioner under this Order. Provided always that no vacancy in the office of Commissioner caused by death resignation or otherwise before the appointed day shall be filled up.

Reconstitution of Commissioners.

7. For the purpose of carrying the Act and this Order into execution the old Commissioners shall as on and from the appointed day be reconstituted and thereafter the Commissioners shall be a body not exceeding eight in number or if they shall co-opt as their chairman any person not having been appointed or otherwise co-opted a Commissioner under this Order (which they are hereby authorised to do) then if and so long as any such person shall be chairman of the Commissioners the Commissioners shall be a body not exceeding nine

in number And as on and from the appointed day all property interests rights powers and authorities of or vested in or exerciseable by the old Commissioners shall belong to and be vested in and exerciseable by the Commissioners The Commissioners shall be constituted as follows:—

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- (1) The Corporation shall have power to appoint six persons to be Commissioners under the Act and this Order of whom two shall be members of the Corporation and four shall be persons each of whom shall be the holder of a mortgage or mortgages of rates or duties granted under the Act of the nominal value of at least one thousand pounds or of a security or securities issued by the Commissioners under the powers of this Order of the nominal value of at least one hundred pounds;

The Commissioners so appointed are in this Order referred to as "the appointed Commissioners":

- (2) The appointed Commissioners shall at their first meeting held after their appointment co-opt two persons to be Commissioners under the Act and this Order each of whom shall be either—

(a) A person residing in the county of Dorset and of British nationality who if co-opted under this Order in the year one thousand nine hundred and nineteen has in the year one thousand nine hundred and fourteen paid rates or duties under the Act to an amount of ten pounds or upwards or if co-opted under this Order in any subsequent year has in the year ending the thirty-first day of December preceding his co-option paid rates under this Order to an amount of ten pounds or upwards; or

(b) A person residing in the said county and of British nationality who is a member of a firm or company whose place or principal place of business is in the said county and all the partners or directors whereof are of British nationality and which firm or company in the case of any co-option of any such person under this Order in the year one thousand nine hundred and nineteen has in the year one thousand nine hundred and fourteen paid rates or duties under the Act to an amount of ten pounds or upwards and which firm or company in the case of any subsequent co-option of any such person under this Order has in the year ending the thirty-first day of December preceding the co-option of such person

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paid rates under this Order to an amount of ten pounds or upwards:

The Commissioners so co-opted other than a Commissioner co-opted as chairman of the Commissioners are in this Order referred to as "the co-opted Commissioners":

- (3) For the purpose of this section the expression "rates" shall include rates paid by any such person firm or company through an agent or agents importer or importers in respect of the value of imports.

Casual
vacancies
among the
Commis-
sioners.

8.—(1) In the event of a casual vacancy occurring in the office of a Commissioner by reason of death resignation or otherwise such vacancy shall be filled up in the case of an appointed Commissioner by a qualified person appointed by the Corporation within three months after such vacancy occurs and in the case of a co-opted Commissioner by a person co-opted by the remaining Commissioners within three months after such vacancy occurs who was at the time when the vacating Commissioner was co-opted qualified to be co-opted as a Commissioner under the provisions of the last preceding section of this Order and who has not since become disqualified and a Commissioner so appointed or co-opted shall continue in office so long only as the vacating Commissioner would have been entitled to hold office.

(2) Any appointment of a Commissioner by the Corporation under the provisions of this Order shall be determinable at any time by the Corporation.

Retirement
of Commis-
sioners.

9.—(1) On the twenty-fifth day of March in the year one thousand nine hundred and twenty-two and on that day in every third year thereafter all the Commissioners then in office shall retire from office and the vacancies shall be filled up by Commissioners appointed and co-opted as by this Order provided and every retiring Commissioner being otherwise qualified shall be eligible for reappointment or to be again co-opted a Commissioner.

(2) On the twenty-fifth day of March one thousand nine hundred and twenty-two and on that day in every third year thereafter any chairman of the Commissioners who has been co-opted as chairman but not appointed or otherwise co-opted under the powers of this Order and who is then in office shall cease to be a Commissioner but may be again co-opted as chairman of the Commissioners and if otherwise qualified shall be eligible for appointment or co-option as a Commissioner.

Commis-
sioners to
keep registers
of persons

10.—(1) The clerk shall on or before the thirty-first day of January next before the appointed day and on or before the thirty-first day of January in every third year thereafter make a register of

persons firms and companies who or whose members are according to the accounts of the harbour undertaking entitled under the provisions of this Order to be co-opted as Commissioners.

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entitled to be
co-opted as
Commis-
sioners.

(2) Such register shall remain open for inspection at the office by any person claiming to be qualified to be co-opted as a Commissioner for a period of fourteen days from the thirty-first day of January next before the appointed day and from the thirty-first day of January in every third year thereafter and if during such period no objection to any such register is made and sustained by the Commissioners the persons and members of the firms and companies whose names appear on such register shall subject to the next following proviso and subject in every case to the person or member being otherwise qualified as required by this Order alone be qualified to be co-opted as Commissioners at the next co-option of co-opted Commissioners Provided that the Board of Trade shall on or before the thirty-first day of January next before the appointed day on the request of the old Commissioners and on or before the thirty-first day of January in every third year thereafter on the request of the Commissioners appoint three persons to be revisers of such register and any such objection which is not sustained by the Commissioners shall be forthwith communicated by them to such revisers who or in case of the death or neglect or failure to act of any of them then the others or other of them may direct such names as they or he may think fit to be added to or removed from any such register.

11.—(1) The quorum for a meeting of Commissioners shall be three.

Quorum and
resignation.

(2) A Commissioner may resign office at any time by giving notice in writing of his resignation to the Commissioners or the clerk.

12.—(1) The Commissioners may act notwithstanding any vacancy in their body but if the number of the Commissioners is reduced below six they shall act only for the purposes of causing vacancies in their body to be filled up.

Validity of
acts of Com-
missioners.

(2) Every act of the Commissioners or of any person acting under their authority shall notwithstanding any defect in the appointment of or any disqualification of any person party to or doing the act be as valid as if there had been no such defect or disqualification.

13. A person shall be disqualified from being appointed or co-opted or from being a Commissioner for the purposes of this Order if he be not or if he ceases to be a British subject or becomes bankrupt or compounds with his creditors or is absent from the meetings of the Commissioners for more than twelve months consecutively (unless in case of illness) or holds any paid office or place of profit under the Commissioners or if being an appointed Commissioner he ceases as the case may be to be either a member of the Corporation or to hold

Disqualifica-
tion of Com-
missioners.

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Bridport. be appointed a Commissioner or if being a co-opted Commissioner he ceases to reside in the county of Dorset or to be a member of the firm or company whose payment of rates or duties under the Act or rates under this Order in part constituted his qualification to be co-opted a Commissioner:

Provided that no person shall be disqualified from becoming or continuing to be a Commissioner by reason only of the fact that—

(a) He has advanced money to or become interested either solely or jointly in any loan to the Commissioners; or

(b) He or any firm or company of which he is a member has or have leased or let any property to or leased or taken any tenancy of any property from or become the occupier of any property of the Commissioners;

but no Commissioner shall vote at any meeting of the Commissioners on any matter or question in which he or any firm or company of which he is a member is or are so interested or concerned as aforesaid and if he do so vote his vote shall not be counted.

Meetings.

14.—(1) The Commissioners may hold meetings at any time and place they may think fit.

(2) The Commissioners need not hold monthly meetings but they shall hold at least two meetings in every year.

(3) The first meeting of the Commissioners shall be held within one month after the appointed day.

(4) The annual meeting of the Commissioners shall be held on such date in the month of April or May in each year as may be fixed by the Commissioners.

(5) Sections 42 and 43 of the Commissioners Clauses Act 1847 as incorporated with this Order shall be read as if the word “monthly” wherever it occurs therein was omitted therefrom.

(6) The clerk on requisition being made to him stating in writing the object of the intended meeting and signed by the chairman or any four or more of the Commissioners shall within forty-eight hours thereafter cause a special meeting to be called to be held within seven days after the receipt of such requisition.

Appointment
of com-
mittees.

15.—(1) The Commissioners may from time to time appoint out of their own body such and so many committees either of a general or special nature and consisting of such number of persons as they may think fit for any purposes which in the opinion of the Commissioners would be better regulated and managed by means of such committees but the acts of every such committee shall be submitted to the Commissioners for their approval.

(2) The quorum of any committee shall be fixed by the Commissioners.

Acquisition of Lands.

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*Bridport.*Incorporation of Lands
Clauses Acts.

16. The Lands Clauses Acts (except so much thereof as relates to the purchase and taking of lands otherwise than by agreement and to the entry upon lands by the promoters of the undertaking) are hereby incorporated with this Order and for the purposes of that incorporation the term "special Act" in those Acts shall mean this Order.

17. The Commissioners may (in addition to any lands authorised by the Act to be taken by them and the lands comprised in the harbour undertaking) purchase by agreement or take on lease and hold for extraordinary purposes any lands not exceeding in the whole twenty-five acres but nothing in this section shall exempt the Commissioners from any proceedings for nuisance caused or permitted by them on land acquired or taken on lease by them under the power conferred by this section.

Lands for
extraordinary
purposes.

18. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and the Act and this Order grant any easement right or privilege (not being an easement right or privilege of water in which other persons than the grantors have an interest) required for the purposes of the Act or this Order in over or affecting any such lands and the provisions of the said Lands Clauses Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid.

Power to take
easements
&c. by
agreement.

19. Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the old Commissioners or the Commissioners as the case may be may retain hold and use for such time as they may think fit or may sell let lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands and premises or any interest therein vested in them or acquired under the Act or this Order and may sell exchange or dispose of any rents reserved on the sale exchange lease or other disposition of such lands and premises and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

Power to
retain and
sell lands*Limits.*

20.—(1) The limits within which the power of the Commissioners to levy rates under this Order may be exercised (hereinafter termed "the rating limits") shall comprise any piers and other works and

Rating limits
and limits of
harbour

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(2) The limits within which the Commissioners shall have authority and within which the powers of the harbour master may be exercised shall comprise the rating limits and an area including so much of the foreshore and bed of the sea below high-water mark of ordinary tides as is within a distance of one thousand feet measured from either of the said pier heads in the harbour which area is coloured blue on the said map or plan and those limits are in this Order termed "the limits of this Order."

(3) In case of any discrepancy between any limits delineated on the said map or plan and any limits described in this section the said map or plan shall be deemed to be correct and shall prevail.

Works and Powers.

Power to
maintain and
improve
works.

21.—(1) Subject to the provisions of this Order the old Commissioners and the Commissioners as the case may be may upon any lands within the limits of this Order maintain alter improve and extend the harbour and any works thereof and construct maintain alter and improve embankments landing places piers quays jetties slips wharves buoys moorings lights beacons roads sewers drains watercourses gas and water pipes electric light and power and other works and conveniences which may be found necessary for the accommodation of vessels and traffic and may also from time to time lay down and maintain rails tramways sidings and turntables on and along the piers quays and other works of the Commissioners.

(2) No line of rails or tramway constructed under the powers of this Order shall be used for the public conveyance of passengers unless and until the same shall have been inspected and certified by the Board of Trade to be fit for such traffic.

(3) Any electric lighting or other apparatus constructed provided and maintained under this Order shall be so constructed used and worked as to prevent any interference with telegraphic communication by means of any telegraphic line belonging to or used by the Postmaster General.

(4) Nothing in this Order shall extend to or authorise any interference with any works of any undertakers within the meaning of the

Electric Lighting Acts 1882 to 1909 to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of that section.

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22.—(1) Subject to the provisions of this Order any works constructed under the powers of this Order on over or under tidal lands below high-water mark of ordinary spring tides shall be constructed only in accordance with such plans and sections and subject to such restrictions and regulations as previous to such works being commenced have been approved by the Board of Trade in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade Any alteration or extension of any such works shall be subject to the like approval.

Works below
high-water
mark to be
subject to
approval of
Board of
Trade.

(2) If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost of the old Commissioners or the Commissioners as the case may be and the amount of such cost shall be a debt due from such Commissioners to the Crown and shall be recoverable as a Crown debt or summarily.

23. Any person who wilfully obstructs any person acting under the authority of the old Commissioners or the Commissioners in setting out the lines of any works authorised by the Act or this Order or who pulls up or removes any poles or stakes driven into the ground for the purpose of setting out the lines of those works shall for every such offence be liable to a penalty not exceeding five pounds.

Penalty for
obstructing
works.

24.—(1) The old Commissioners or the Commissioners as the case may be may deepen dredge scour and excavate any portion of the fore-shore and bed of the sea to the extent necessary to secure a sufficient waterway and approach to the harbour for vessels using the same.

Power to
dredge and
sell materials.

(2) All sand mud and other materials dredged up or removed shall be the property of the Commissioners and they may sell or otherwise dispose of or remove or deposit the same as they think fit Provided that no sand mud or other material shall be laid down or deposited in any place below high-water mark without the consent in writing of the Board of Trade having been first obtained.

(3) All money arising from any sale or other disposition of sand mud and other materials under this section after payment of the expenses connected therewith shall be applied in the same manner as the harbour revenue is to be applied.

(4) Nothing in this section shall be deemed to derogate from or affect any powers rights or authorities in respect of the removal sale and disposal of sand shingle gravel or other material which are under the Act vested in or exerciseable by the old Commissioners and are under this Order vested in or exerciseable by the Commissioners.

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*Bridport.*Power to
purchase
dredgers &c.

25. The old Commissioners or the Commissioners as the case may be may from time to time provide purchase take on lease hire and use such steam or other dredgers engines tugs lighters or other vessels diving bells tools plant or other materials as they may think necessary for effecting the purposes of the Act and this Order and may let the same on hire for such sums and upon and subject to such terms and conditions as they may think fit or may sell or dispose thereof All sums received in respect of any such letting on hire shall be deemed to form part of the harbour revenue and all moneys realised by any such sale or disposal shall be applied towards carrying into effect any of the purposes of the Act and this Order to which capital is properly applicable.

*Rates.*Power to levy
rates.

26.—(1) Sections 25 and 26 of the Harbours Clauses Act 1847 shall not be incorporated with this Order.

(2) From and after the commencement of this Order the old Commissioners and from and after the appointed day the Commissioners may within the rating limits subject and according to the provisions of this Order demand receive and recover for the use of the harbour and in respect of vessels boats persons goods animals fish and things and for services described in the schedule to this Order any rates not exceeding those specified in that schedule.

Power to vary
exemptions
and com-
pound for
rates.

27. The old Commissioners or the Commissioners as the case may be may confer vary or extinguish exemptions from and compound with any person with respect to the payment of rates or charges authorised by this Order but so that no preference be in any case given to any person over any other person using the harbour under the like circumstances and that anything done under this section shall not prejudice the other provisions of this Order.

Rates for
warehouses
&c.

28. The old Commissioners or the Commissioners as the case may be may (so far as the rates specified in the schedule to this Order do not extend) demand and recover such rates or charges or other consideration as they think reasonable for the use of any warehouses sheds buildings yards weighing machines mooring posts cranes buoys works and conveniences belonging to or provided by such Commissioners or in respect of any services rendered by them in connexion with the harbour undertaking.

Rates for
tugs.

29. The rates and charges payable for or in respect of the use of steam and other tugs provided maintained or let by the old Commissioners or the Commissioners shall be paid by the owner master consignee or other person having charge of the vessel obtaining the assistance of the tug to such Commissioners or their lessees and those rates and charges shall be due and payable whether the tug shall be actually employed or not provided the assistance thereof shall have

been required and shall in consequence of a requisition have been tendered by the master or other person having command of the tug. A.D. 1918.
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30. The old Commissioners or the Commissioners as the case may be may supply and remove ballast for the accommodation of vessels within the limits of this Order or permit the master or owner of any vessel within the limits of this Order to lift or convey ballast from or to any place where it may be lawfully obtained or deposited for the purpose of supplying or removing the ballast of such vessel on payment to such Commissioners of such reasonable rates as they shall think fit but no material shall be taken from the foreshore or sea-bed under the provisions of this section without the approval of the Board of Trade. Ballast for
vessels.

31.—(1) The master or owner of any vessel (not being a pleasure boat) with a take or cargo of fish shall on the arrival of the vessel within the rating limits forthwith furnish to the collector of rates a true and accurate statement of his take or cargo of fish and the name of every person obtaining delivery thereof. Masters of
fishing vessels
to report
take of fish.

(2) If the master or owner of the vessel fails to comply with this section he shall for each offence be liable to a penalty not exceeding ten pounds.

32. The harbour master may prevent the removal or sailing from within the limits of this Order of any vessel in respect of which or of the goods imported or exported therein any rates are payable until evidence has been produced to him of the payment of those rates to the collector and in the case of a vessel with a take or cargo of fish until the master or owner of the vessel has given in the account of his take or cargo of fish required by this Order. Harbour
master may
prevent sail-
ing of vessels.

33. Fishing vessels belonging to countries with which for the time being treaties exist exempting from duties and port charges those vessels when forced by stress of weather to seek shelter in the ports or on the coast of the United Kingdom shall when forced by stress of weather to make use of the harbour and not breaking bulk while making use thereof be exempt from rates leviable under this Order. Certain
fishing ves-
sels under
stress of
weather
exempt from
rates.

34. All persons going to or returning from any lifeboat or using any apparatus for saving life and being persons either belonging to the crew of the lifeboat or to the coastguard or being persons for the time being actually employed in saving life or in exercising or using the lifeboat or the apparatus for saving life and all persons brought ashore from any vessel in distress shall at all times have free ingress passage and egress to along and from the harbour. Exemption of
lifeboat crew.

35.—(1) The rates to be received by the old Commissioners or the Commissioners as the case may be shall be adjusted by such Commissioners in such a manner that as far as possible the harbour Board of
Trade may
reduce rates.

A.D. 1918. revenue shall be sufficient and not more than sufficient for the purposes
Bridport. of the harbour undertaking.

(2) If at any time it appears to the Board of Trade from the annual account to be sent to them under this Order that the clear annual income derived from the rates leviable by such Commissioners on the average of the then three last preceding years after payment of all expenses and outgoings exceeds the amount sufficient for the purposes of the Act and this Order the Board may if in their discretion they think fit reduce the rates leviable under this Order to such amounts as will be sufficient to provide the amount aforesaid and may again at any time raise the rates to any amount not exceeding the rates specified in the schedule to this Order.

Powers of Sale and Leasing.

Power to
sell.

36.—(1) The Commissioners at any time may with the previous consent in writing of and upon such terms conditions and restrictions as may be sanctioned by the Board of Trade sell their undertaking and the purchaser to the extent authorised by his conveyance shall have and may exercise all or any of the powers conferred upon the Commissioners by the Act and this Order or which the Commissioners have or might exercise under the Act and this Order and shall be subject to all the liabilities and obligations to which the Commissioners are subject and shall perform all the duties of the Commissioners under the Act and this Order.

(2) The Commissioners shall within one month after the date of any conveyance made under this section deposit a certified copy thereof with the Board of Trade and shall as from the expiration of that month be liable to a penalty not exceeding twenty pounds for every week or part of a week during which they refuse or neglect to comply with this subsection.

(3) In the event of any sale of the undertaking under the provisions of this section then from and after the completion of the sale the Commissioners shall as such subsist only for the purposes of receiving and recovering any moneys due to them and of paying their debts and liabilities and for winding up the affairs of the Commissioners and on the completion of the winding up of such affairs the Commissioners shall by virtue of this Order be dissolved.

Power to
lease under-
taking or
rates.

37.—(1) The Commissioners at any time may with the previous consent in writing of and upon such terms conditions and restrictions and for such period as may be sanctioned by the Board of Trade lease to any company corporation or person—

(a) The harbour undertaking ; or

(b) The rates and other charges authorised to be taken by the
Act and this Order.

(2) As from the date of any lease made under the last preceding subsection the lessee during the continuance of and to the extent provided in his lease shall have and may exercise all or any of the powers conferred upon the Commissioners by the Act or this Order which the Commissioners have or might exercise under the Act or this Order and shall be subject to all the liabilities and obligations to which the Commissioners are subject and shall perform all the duties of the Commissioners under the Act and this Order.

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(3) No lease made under subsection (1) of this section shall be assignable without the previous consent in writing of the Board of Trade.

(4) The Commissioners shall within one month after the date of any lease made under this section deposit a certified copy thereof with the Board of Trade and shall as from the expiration of that month be liable to a penalty not exceeding twenty pounds for every week or part of a week during which they refuse or neglect to comply with this subsection.

(5) No lease made under this section shall be made in consideration or part consideration of any fine premium or other capital sum.

(6) Nothing in this section shall exempt the Commissioners from their obligations to keep and render accounts and as from the date of any lease made under this section all the provisions of the Acts incorporated with this Order and of this Order as to the keeping delivery and audit of accounts shall apply to and be binding upon as well the lessee as the Commissioners and all moneys received by the Commissioners under or in respect of any such lease shall be deemed to be moneys levied by virtue of and income received under the Act and this Order.

38. In addition to any general power in this Order contained the Commissioners may let for hire or lease for any term not exceeding fourteen years any rooms shops sheds warehouses or other buildings separately from any other part of the harbour undertaking to any company corporation or person upon such terms pecuniary or otherwise and under such restrictions and conditions as they think fit.

Power to
lease ware-
houses.*Finance.*

39.—(1) The Commissioners may from time to time borrow at interest not exceeding without the consent of the Board of Trade six per centum per annum—

Power to
borrow.

(a) For the payment of the costs charges and expenses of and incidental to this Order such sum as may be required for the purpose;

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- (b) For or in connexion with the repair restoration or improvement of the harbour and the execution of any works incidental thereto and the acquisition of any lands rights or easements therefor and for the payment of any sum of cash in satisfaction of any mortgage of rates or duties granted under the Act any sum or sums not exceeding in the whole seven thousand five hundred pounds;
- (c) With the consent of the Board of Trade such further sum or sums as may from time to time be required for any of the purposes of the harbour undertaking.

(2) In order to secure the repayment of moneys borrowed for the purposes mentioned in this section and the payment of interest thereon the Commissioners may mortgage or charge the harbour revenue and the harbour undertaking and any property for the time being belonging to the Commissioners or any part or parts thereof respectively and so that any mortgage or charge granted under the provisions of this Order shall rank both as to principal and interest in priority to all mortgages of rates or duties granted under the Act and for the time being subsisting.

Power to
provide for
mortgages
under the
Act.

40.—(1) The Commissioners shall within six months from the date when the Commissioners shall first raise any moneys under the powers of this Order in excess of the sum of two thousand pounds and any moneys required for the purposes (A) in the last preceding section mentioned (which date is in this section called “the date of further borrowing”) pay to any person being at the time of such payment the holder of any mortgage of rates or duties granted under the Act in respect of which mortgage the old Commissioners shall within three months from the commencement of this Order have been requested in writing so to do one-tenth of the nominal amount secured by such mortgage and each sum so paid by the Commissioners shall be accepted by the person to whom the same is paid in full satisfaction of the mortgage in respect of which the same is paid and all interest due thereon up to the date of payment.

(2) The Commissioners may at any time and notwithstanding anything contained in this section compound for the payment off of any mortgage of rates or duties granted under the Act on such terms as may be agreed between the holder of such mortgage and the Commissioners and any such holder may enter into and make any agreements for any such composition.

(3) The Commissioners shall provide for all such payments in cash as may before the date of further borrowing become payable by them under either of the two last preceding subsections of this section out of the first moneys which the Commissioners shall raise

under the powers of this Order in excess of the sum of two thousand pounds and of any moneys required for the purposes (A) in the last preceding section mentioned and if at any time the moneys so raised by the Commissioners in excess as aforesaid shall be insufficient to enable the Commissioners to make payments in cash to all the holders of mortgages of rates or duties granted under the Act who have before the date of further borrowing agreed with the Commissioners to accept payment in cash as aforesaid the rotation or order in which such payments shall be made to such holders shall from time to time as the occasion arises be determined by lot.

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(4) Notwithstanding anything in this section contained the Commissioners shall pay to any holder of any mortgage of rates or duties granted under the Act who has accepted payment in cash as aforesaid interest at the rate of six pounds per centum per annum on an amount equivalent to one tenth of the nominal value of such mortgage from the date of further borrowing or the date of such holder's agreement with the Commissioners whichever shall be the later until such payment in cash shall actually be made and in the meantime every such holder shall be deemed to have the same rights as if the Commissioners had granted to him a mortgage under this Order for an amount equivalent to one tenth of the nominal value of his mortgage of rates or duties granted under the Act.

(5) If any holder of any mortgage of rates or duties granted under the Act shall by notice in writing sent to the old Commissioners within three months after the commencement of this Order elect or shall at any time thereafter agree with the old Commissioners or the Commissioners to accept in satisfaction of such mortgage under the Act a mortgage of the Commissioners granted under this Order for a sum equivalent to a tenth part of the nominal value of such mortgage under the Act in lieu of a payment in cash the Commissioners shall so soon as possible after the date of further borrowing or the date of such agreement whichever shall be the later grant to such holder a mortgage under this Order and bearing interest at the same rate per centum per annum as that paid by the Commissioners upon any other mortgages granted by them under this Order in full satisfaction of his said mortgage under the Act and all interest due and accruing due thereon up to the date of further borrowing or the date of such agreement whichever shall be the later date All such mortgages granted by the Commissioners shall rank *pari passu* in all respects *inter se* and with any other mortgages granted by the Commissioners under this Order and be subject to the same provisions.

(6) The Commissioners shall pay to any holder of a mortgage of rates or duties granted under the Act who has given such a notice or made such an agreement as is mentioned in the last preceding

A.D. 1918. subsection of this section interest at the same rate per centum per annum as that paid by the Commissioners upon any other mortgages granted by them under this Order on an amount equivalent to one tenth of the nominal value of such mortgage from the date of further borrowing or the date of such agreement whichever shall be the later until the grant to him by the Commissioners of such a mortgage under this Order as is provided for by the last preceding subsection of this section.

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(7) The Commissioners shall within one month from the commencement of this Order give notice by public advertisement in the "Bridport News" or some other newspaper circulating in Bridport of the provisions of this section and shall send notice of such provisions to each holder of a mortgage of rates or duties granted under the Act by registered letter sent through the post addressed to such holder at his last address as appearing in the books relating to the harbour undertaking.

Commis-
sioners may
borrow from
bankers.

41. The Commissioners for the purpose of raising any money by this Order authorised to be borrowed may accept and take from any bank or banking company credit to any amount not exceeding in the whole the amount for the time being of the unexhausted borrowing powers of the Commissioners under this Order.

Consent of
Treasury to
borrowing of
money during
war.

42. The Commissioners shall not during the continuance of the present war and within twelve months thereafter borrow any money under the provisions of this Order unless the consent of the Treasury has been previously obtained.

Power to
Corporation
to lend and
guarantee.

43.—(1) The Corporation being a rating authority as defined by section 7 of the Public Works Loans Act 1882 may (subject to the provisions of this Order) if they think it expedient in the interests of the inhabitants at large of the borough so to do aid the Commissioners by guaranteeing the payment of the interest on any moneys which may from time to time be borrowed by the Commissioners under the powers of this Order or by lending to the Commissioners such moneys as the Commissioners may require and may be authorised to borrow or partly by such guarantees and partly by such loans.

(2) The Commissioners may give to the Corporation such indemnities charges or securities for or in respect of any such guarantee or loan as aforesaid as may be agreed between them and so that any such indemnity charge or security shall rank both as to principal and interest in priority to all mortgages of rates or duties granted under the Act and for the time being subsisting.

(3) In order to raise the sum required for the purpose of any such loan as aforesaid the Corporation may borrow money on the

security of the borough fund and the borough rate or either of them and may mortgage charge or assign the same or either of them. A.D. 1918.

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(4) The Corporation shall not give any such guarantee or make any such loan as aforesaid or mortgage charge or assign the borough fund or the borough rate under the provisions of this section except in pursuance of a special resolution for the purpose passed at a meeting of the Corporation and published once at least in each of two successive weeks in a local newspaper circulating in the district and confirmed at a second meeting of the Corporation held not less than fourteen days after the first publication of notice of such resolution and not less than three months after the meeting at which the resolution was passed.

44. All moneys borrowed by the Corporation for the purpose of being lent to the Commissioners and actually lent to them under the provisions of this Order shall be repaid by the Corporation within the respective periods following (in this Order collectively and singly referred to as "the prescribed periods" and "the prescribed period" respectively) (that is to say):—

Period for
repayment of
moneys bor-
rowed by
Corporation.

(a) As to money lent to the Commissioners for the purposes (a) mentioned in the section of this Order of which the marginal note is "Power to borrow" within five years from the commencement of this Order;

(b) As to money lent to the Commissioners for the purposes of the payment of any such sum of cash as is mentioned in (b) of the said section within fifty years from the date of borrowing the same and as to money lent to the Commissioners for any other of the purposes (b) mentioned in the said section within thirty years from the date of borrowing the same; and

(c) As to money lent to the Commissioners for the purposes (c) mentioned in the said section within such period from the date of borrowing the same as the Board of Trade shall prescribe.

45. The powers of borrowing money by this Order given to the Corporation shall not be restricted by any of the regulations contained in section 234 (Regulations as to exercise of borrowing powers) of the Public Health Act 1875 and in calculating the amount which the Corporation may borrow under that Act or any other enactment any sums which they may borrow under this Order shall not be reckoned.

Section 234
of Public
Health Act
1875 not to
apply.

46. The Corporation may raise all or any moneys which they are authorised to borrow under this Order by mortgage or by the issue of debentures or annuity certificates under and subject to the

Mode of
raising
money.

A.D. 1918. provisions of the Local Loans Act 1875 or partly in one way and
Bridport. partly in another or others Provided that the provisions of this Order relating to sinking funds shall apply to sinking funds formed for the payment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 (Discharge of loan by sinking fund) of that Act.

Certain provisions of Public Health Act 1875 to apply to mortgages of Corporation.

47. The provisions of sections 236 to 239 of the Public Health Act 1875 shall be applicable to any mortgage granted by the Corporation under the provisions of this Order.

Mode of payment off of moneys borrowed by Corporation.

48. The Corporation shall pay off all moneys borrowed by them on mortgage under the provisions of this Order either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by such instalments and partly by a sinking fund and the payment of the first instalment shall be made within twelve months if a yearly instalment or within six months if a half-yearly instalment after the date of borrowing the sum in respect of which it is made and the first payment to the sinking fund shall be made within twelve months after the date of borrowing the sum in respect of which it is made.

Sinking fund.

49.—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed under the powers of this Order such fund shall be formed and maintained either—

(a) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is hereinafter called a “non-accumulating sinking fund”; or

(b) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum or such higher rate as may from time to time be approved by the Local Government Board will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed A sinking fund so formed is hereinafter called an “accumulating sinking fund.”

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities and the Corporation shall be at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

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(4) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the moneys for the repayment of which the fund is formed. Provided that if the Corporation shall avail themselves of this power in the case of an accumulating sinking fund they shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Corporation.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Order shall be paid by the Corporation in addition to the payments provided for by this Order.

(7) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with (in the case of an accumulating sinking fund) the probable accumulations thereon will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause it to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Corporation shall increase the payments to such extent as that Board may direct.

(8) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to the sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with (in the case of an accumulating sinking fund) the probable accumulations thereon will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may with the consent in writing of that Board reduce the payments to the sinking fund either temporarily or permanently to such amounts

A.D. 1918. as will in the opinion of the Local Government Board be sufficient to
Bridport. repay within the prescribed period the moneys for the repayment of
 which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with (in the case of an accumulating sinking fund) the probable accumulations thereon will in the opinion of the Local Government Board be sufficient without any further payments thereto to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may with the consent in writing of that Board discontinue the annual payments to such sinking fund until that Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent in writing of the Local Government Board may determine.

(12) For the purposes of this section "statutory security" means and includes any investment in which trustees are for the time being by statute authorised to invest trust money and any mortgage bond debenture or stock of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation.

Return as to
 sinking fund
 to be made to
 Local Go-
 vernment
 Board.

50.—(1) The town clerk of the borough shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Order or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the said town clerk showing for the year next preceding the making of such return or for such other period as the said Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year.

(2) The said town clerk in the event of any wilful default by him in making the return under this section shall for each offence be liable to a penalty not exceeding twenty pounds to be paid to the Local Government Board and to be recoverable by that Board by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

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(3) If it appears to the Local Government Board by the return under this section or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Order or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised by this Order the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which the default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

51. The Corporation shall (subject to the provisions of this Order) provide out of the borough fund any sums from time to time required for the fulfilment of any guarantee given by them under the provisions of this Order or for the payment of interest or repayment of principal in respect of any moneys borrowed by them under the provisions of this Order or the maintenance of any sinking fund required to be formed by the provisions of this Order and shall from time to time raise and levy as part of the borough rate such sums as may be necessary therefor.

Corporation may provide sums for guarantee given or repayment of moneys borrowed by them.

52. All sums paid by the Corporation in pursuance of any guarantee given by them under the provisions of this Order shall be repaid by the Commissioners to the Corporation with interest at such rate as may be agreed upon between the Corporation and the Commissioners from the date of payment as soon as the resources of the Commissioners will admit and any doubt or difference as to the time and amount of any such repayment shall on the application of the Corporation stand referred to and be determined by the Local Government Board whose determination shall be binding on the Commissioners and the Corporation and final for all purposes.

Sums paid under guarantee or contract to be repaid.

53. All sums paid or repaid by the Commissioners to the Corporation in respect of any guarantee given by the Corporation under the provisions of this Order shall be paid into the borough fund All sums

Application of moneys paid by Commissioners to Corporation.

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paid by the Commissioners to the Corporation by way of interest on any loan by the Corporation to the Commissioners shall be applied by the Corporation primarily in or towards the payment of interest on any money borrowed by the Corporation under the provisions of this Order and subject thereto shall be paid into the borough fund All sums paid by the Commissioners to the Corporation by way of repayment of any loan by the Corporation to the Commissioners shall be applied by the Commissioners primarily in or towards the repayment of any money borrowed by the Corporation under the provisions of this Order and subject thereto shall be paid into the borough fund.

Reference of
disputes.

54. Any dispute arising between the Commissioners and the Corporation with respect to the construction of the provisions of this Order relating to or in connexion with any such guarantee or loan by the Corporation as aforesaid or the giving effect to the same or with respect to their mutual duties or obligations under this Order which is not otherwise provided for by this Order shall on the written application of either party to the Local Government Board stand referred to and be determined by an arbitrator to be appointed by the Local Government Board and the determination of such arbitrator shall be binding on the Commissioners and the Corporation and be final for all purposes.

Saving for
Commis-
sioners and
Corporation.

55. Save as herein expressly provided nothing in this Order shall abridge affect or interfere with any powers rights or privileges of the old Commissioners or the Commissioners or the Corporation.

Power to
Corporation
to re-borrow.

56.—(1) The Corporation shall have power---

- (a) to borrow for the purpose of paying off any moneys previously borrowed under this Order which are intended to be forthwith repaid; or
- (b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under this Order and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall (subject to the provisions of this Order) be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid— A.D. 1918.
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(A) by instalments or annual payments; or

(B) by means of a sinking fund; or

(C) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

57. The money borrowed under this Order shall be applied only for the purposes of this Order for which capital money may be properly applied and not otherwise. Application
of money
borrowed.

58. Any person advancing money to the Commissioners shall not be bound to require any further or other evidence of the power of the Commissioners to borrow the money advanced by such person than such as is afforded by a certificate signed by the clerk and two of the Commissioners that the Commissioners are not exceeding the powers of borrowing conferred on them by this Order and shall not be bound to see the application or be answerable for any loss misapplication or non-application of the money lent. Protection of
lenders.

59. The Commissioners shall have power to re-borrow in order to replace any moneys previously borrowed by them which have been repaid. Re-borrowing
by Commis-
sioners.

60. The proceeds of sale of any surplus lands of the Commissioners under the powers of this Order and all other moneys received on capital account not being borrowed moneys shall be distinguished as capital in the accounts of the Commissioners and shall be applied in discharge of moneys borrowed by the Commissioners under this Order Provided that such proceeds when used to pay off borrowed moneys shall not be applicable to the payment of instalments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Board of Trade. Proceeds of
sale of sur-
plus lands to
be treated as
capital.

61.—(1) The holders of any security given in respect of money borrowed by the Commissioners under this Order may enforce payment of arrears of interest or principal or principal and interest due on their securities by the appointment of a receiver. Appointment
of receiver.

(2) In order to authorise the appointment of a receiver in respect of arrears of principal or principal and interest the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one half of the amount of the mortgages of the Commissioners for the time being outstanding irrespective of mortgages of rates or duties granted under the Act.

(3) In the application of sections 86 and 87 of the Commissioners Clauses Act 1847 to this Order the expressions "mortgage" and

A.D. 1918. "mortgagee" shall respectively include any security for money borrowed
Bridport. by the Commissioners under this Order and the holder of any such security.

Same person
may be clerk
and treasurer. 62. Notwithstanding anything in the Commissioners Clauses Act
1847 contained the same person may be both clerk and treasurer to
the Commissioners.

Contingency
fund. 63. The Commissioners shall for the purpose of forming and main-
taining a contingency fund not exceeding at any time the sum of
five thousand pounds or such larger sum as the Board of Trade may
from time to time sanction to meet any extraordinary claim or demand
or any unforeseen accident or extraordinary damage which may happen
or be caused to the harbour appropriate and set apart in each year
out of the harbour revenue subject to the provisions of this Order as
to application of harbour revenue an amount equivalent to fifteen per
centum thereof and shall deposit such amounts in some joint stock
bank to be increased by accumulation in the way of compound interest
or otherwise or shall invest the same in securities upon which trust
moneys may be invested (other than securities of the Commissioners)
until required for any of the aforesaid purposes.

Application
of harbour
revenue. 64. The harbour revenue shall be applicable for the purposes and
in the order following and not otherwise:—

- (1) In payment of the costs of and connected with the preparation
and obtaining of this Order and otherwise incurred in
reference thereto except in so far as they may be provided
for out of moneys borrowed by the Commissioners for the
purpose under this Order:
- (2) In payment of the expense properly chargeable to revenue of
the carrying on maintenance repair and management of the
harbour undertaking:
- (3) In payment year by year of the interest accruing on money
borrowed by the Commissioners under this Order and for
the time being outstanding and on any moneys paid by the
Corporation under any guarantee given by them under the
powers of this Order and not for the time being repaid
by the Commissioners and on any moneys secured by any
mortgages granted by the Commissioners under this Order
to holders of and in satisfaction for mortgages of rates or
duties granted under the Act as shall for the time being be
subsisting and of any interest due to such holders under
subsection (6) of the section of this Order whereof the
marginal note is "Power to provide for mortgages under
the Act":

(4) In payment of any interest on moneys secured by mortgages of rates and duties granted under the Act and for the time being subsisting: A.D. 1918.
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(5) In making in each year a payment of an amount equivalent to fifteen per centum of the harbour revenue into a contingency fund established under the provisions of this Order until such fund amounts to the sum of five thousand pounds or such larger sum as the Board of Trade may from time to time sanction and so that if and as often as such fund is reduced below the sum of five thousand pounds or the larger sum for the time being sanctioned as the maximum amount thereof as the case may be the same shall be made up again by such annual payments to such maximum amount:

(6) In or towards the repayment of the principal of any moneys borrowed by the Commissioners under this Order and in repayment to the Corporation of any moneys paid by the Corporation in respect of any guarantee given by them under the provisions of this Order until all such moneys shall have been repaid:

(7) In or towards the repayment of any principal moneys secured by mortgages of rates or duties granted under the Act and for the time being subsisting.

The surplus (if any) after providing for the purposes aforesaid shall be applied by the Commissioners in the improvement of the harbour undertaking.

65.—(1) The Board of Trade shall unless they see special reason to the contrary appoint a person to be permanent auditor to examine and audit the accounts of the Commissioners and shall fix the payments to be made to him for salary and for expenses (if any) and the amount of the salary and expenses (if any) shall be paid by the Commissioners out of the harbour revenue. Appointment
of auditor.

(2) The Board of Trade may at any time revoke the appointment of any person as auditor and thereupon shall unless they see special reason to the contrary appoint another person as auditor.

(3) The Commissioners shall on demand by the auditor produce to him all books accounts deeds papers writings and other documents and furnish him with all information in their possession or power and afford him all reasonable facilities for conducting the examination and audit.

(4) If the Commissioners refuse or neglect to comply with any of the provisions of this section they shall be liable to a penalty not exceeding twenty pounds for every month during which they neglect or refuse so to comply.

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*Bridport.*Annual
account to be
sent to Board
of Trade.

66.—(1) The Commissioners shall within one month after sending to the clerk of the peace the copy of their annual account in abstract send a copy of the same to the Board of Trade and the sixteenth section of the General Pier and Harbour Act 1861 Amendment Act shall apply to and include any such account.

(2) The Commissioners shall as from the expiration of that month be liable to a penalty not exceeding twenty pounds for every week or part of a week during which they refuse or neglect to comply with this section.

(3) The account shall be made up to the end of the thirty-first day of March in each year.

(4) In addition to the account to be lodged with the clerk of the peace in accordance with section 50 of the Harbours Clauses Act 1847 the Commissioners shall also lodge with him a full and detailed statement showing the capital expenditure made by the Commissioners during the year covered by the said account.

Byelaws.

Byelaws.

67.—(1) The byelaws which may from time to time be made by the Commissioners in exercise of the power in that behalf conferred on them by section 83 of the Harbours Clauses Act 1847 may provide for imposing a penalty not exceeding forty shillings for the breach or non-observance of any of the byelaws.

(2) No byelaw shall come into operation until it has received the allowance and confirmation of the Board of Trade and that allowance and confirmation shall be sufficient for all purposes.

(3) Sections 84 and 85 of the Harbours Clauses Act 1847 shall not be incorporated with this Order.

*Life-saving Apparatus.*Provision for
life-saving
apparatus.

68.—(1) Sections 16 to 19 of the Harbours Clauses Act 1847 shall not be incorporated with this Order.

(2) The Commissioners shall whenever required by the Board of Trade provide at their own expense and to the satisfaction of the Board of Trade a site on or near the harbour and build on that site a house or other proper accommodation for a lifeboat rocket apparatus and other life-saving apparatus.

(3) If the Commissioners fail to comply with this section they shall be liable to a penalty not exceeding ten pounds for every month during which the failure continues.

Life-saving
apparatus
may be
attached to
harbour.

69. The officers of the coastguard and all other persons for the time being actually employed in connexion with the lifeboat or the apparatus for saving life may either permanently or temporarily without

payment attach or cause to be attached to any part of the harbour spars and other apparatus for saving life and may also either in course of using or of exercising the apparatus for saving life fire rockets over the harbour.

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70. The Commissioners shall at all times keep at convenient places in the harbour and in obedience to any requirements which may be made by the Board of Trade lifebuoys and lifelines in good order and fit and ready for use.

Lifebuoys
to be kept.*Lights.*

71.—(1) The Commissioners shall at the outer extremity of their works below high water exhibit and keep burning from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Corporation of Trinity House Deptford Strond shall from time to time direct.

Permanent
lights on
works.

(2) If the Commissioners fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

72. In case of injury to or destruction or decay of the harbour or any part thereof the Commissioners shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Corporation of Trinity House Deptford Strond and shall apply to that Corporation for directions as to the means to be taken and the Commissioners shall be liable to a penalty not exceeding ten pounds for every calendar month during which they omit so to apply or refuse or neglect to obey any direction given in reference to the means to be taken.

Provision
against
danger to
navigation.*Miscellaneous.*

73.—(1) Whenever any vessel is stranded or sunk in the harbour or in or near any approach thereto from the sea or is laid by in the harbour or neglected as unfit for sea service the Commissioners may cause that vessel to be raised or removed or to be blown up or otherwise destroyed so as to clear the harbour and its approaches therefrom.

Removal of
stranded or
sunk vessels.

(2) The Commissioners may cause any such vessel and the furniture tackle and apparel thereof or any part thereof respectively which shall be raised or saved and also all or any part of the cargo goods chattels and effects which may be raised or saved from any such vessel to be sold in such manner as they think fit (subject to such notice being given of the intended sale as is prescribed by the first proviso to section 530 of the Merchant Shipping Act 1894) and out of the proceeds of sale may reimburse themselves for the expenses incurred by them under this section and also for any expenses incurred by them in

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marking watching lighting or otherwise controlling the vessel and shall hold the surplus (if any) of the proceeds of sale in trust for the persons entitled thereto :

Provided always that the Commissioners shall before selling any such cargo goods chattels or effects as aforesaid pay all duties which may be payable to His Majesty in respect of the cargo goods chattels or effects to be sold and they may retain the amount of the duties so paid out of the proceeds arising from the sale of such cargo goods chattels or effects.

(3) If the proceeds of sale are insufficient to reimburse the Commissioners for the aforesaid expenses the Commissioners may recover the deficiency or in case of an appeal under subsection (4) of this section such sum as is awarded by the arbitrator to be payable in respect of the deficiency from the person who at the time of the sinking or stranding of the vessel was the registered owner thereof or from the executors or administrators of such owner as a debt either summarily as a civil debt or in any court of competent jurisdiction.

(4) If on demand being made under this provision for payment of any deficiency the person on whom the demand is made is dissatisfied with the amount demanded he may within fourteen days after the receipt of the demand appeal to the Board of Trade who shall appoint an arbitrator to determine and award whether any and what sum is payable in respect of the deficiency and the award of the arbitrator appointed by the Board of Trade that no sum is payable or as to the sum payable as the case may be shall be conclusive and binding on both parties. The costs of the appeal and the award shall be in the absolute discretion of the arbitrator and he shall award and order how those costs are to be borne and paid and any costs so awarded and ordered to be paid by either party may be recovered by the other party in the same manner as the sum payable in respect of the deficiency is recoverable under subsection (3) of this section.

(5) The powers given to the Commissioners under subsection (1) of this section shall not be exercised if the registered owner of the vessel stranded or sunk shall within twenty-four hours after the vessel shall have been stranded or sunk take such steps as may in the opinion of the harbour master be necessary for the raising or removal thereof and shall thenceforth continuously and diligently and to the satisfaction of the harbour master prosecute and do all such works and things as may in the opinion of the harbour master be necessary and proper for the raising and removal of the vessel as speedily as possible.

Meters and
weighers.

74. The Commissioners shall have the appointment of meters and weighers within the limits of this Order.

75. The Commissioners may appoint officers for securing the observance of the byelaws and regulations made by the Commissioners under this Order in respect of the harbour and may from time to time procure such officers to be sworn as constables for that purpose but no such officers shall act as constables until so sworn in and unless in uniform or provided with a warrant.

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*Bridport.*Appointment
of officers to
enforce
byelaws and
regulations.

76. For all the purposes of the Harbours Clauses Act 1847 this Order shall be deemed the special Act but sections 6 to 13 of that Act shall not be incorporated with this Order.

Application
of Act 10 & 11
Vict. c. 27.

77. All penalties under this Order shall be recovered and applied as penalties are recoverable and applicable under the Harbours Clauses Act 1847.

Recovery of
penalties.

78. Officers of the Board of Trade and police officers acting in the execution of their duty shall at all times have free ingress passage and egress to along and from the harbour without payment.

Officers
exempt from
rates.

79. The Commissioners shall within the limits of this Order be a local lighthouse authority for the purposes of the Merchant Shipping Act 1894.

Local light-
house autho-
rity.

80. In the event of the harbour undertaking being wound up the balance of any moneys realised on such winding up and remaining after satisfying all outstanding mortgages or charges granted under this Order and under the Act and any interest thereon and any other debts or liabilities of the Commissioners and the expenses of such winding up shall be paid over to the Corporation and become and be part of the borough fund.

Rights of
holders of
securities
under Act on
winding up of
undertaking.

81. The following provisions of the Act are hereby repealed (that is to say):—

Repeal of
certain pro-
visions of
Act.

Sections 3 to 8 sections 11 to 36 sections 38 to 41 sections 43 to 45 sections 48 to 69 sections 71 to 81 and the Schedules (A) and (B) to the Act.

82. Nothing in this Order affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Commissioners to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

Saving rights
of Crown.

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Bridport.Crown
minerals.

83. Notwithstanding the provisions contained in the section of this Order whereof the marginal note is "Saving rights of Crown" or in any public statute His Majesty and His lessees for their respective interests may work any minerals belonging to the Crown under or adjacent to the lands and works of the Commissioners but in the event of any such right being at any time intended to be exercised the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near the railway shall apply when the workings reach a point the distance of which from the nearest of such lands would not if measured horizontally exceed one half the depth of such workings below the surface level of such lands and in the application of those provisions the term "company" shall mean the Commissioners and the term "railway" shall mean the said lands and works.

Harbour to
be in borough
of Bridport.Costs of
Order.

84. The harbour shall be deemed to be for all purposes within the borough.

85. All costs charges and expenses of and incident to the preparing and obtaining of this Order and otherwise incurred in reference thereto (as taxed by the taxing officer of the House of Lords or of the House of Commons) shall be paid by the Commissioners out of moneys borrowed by the Commissioners under this Order or out of any funds at their disposal as such Commissioners.

The SCHEDULE to which the foregoing Order refers.

I.—RATES ON VESSELS (OTHER THAN FISHING VESSELS) ANCHORING OR MOORING WITHIN THE RATING LIMITS.

	<i>s.</i>	<i>d.</i>
For every vessel entering light or in ballast and leaving with a cargo per registered ton - - - - -	0	4½
For every vessel entering with a cargo and leaving light or in ballast per registered ton - - - - -	0	4½
For every vessel entering with a cargo and leaving with a cargo per registered ton - - - - -	0	5½
All lighters from any vessel inside the rating limits shall be exempted from rates but if the vessel do not enter the said limits every lighter shall pay for each trip per registered ton - - - - -	0	2

Proviso—Ships' boats and boats entirely open with fresh fish (other than herrings for curing) which carry no other cargo nor any passenger shall be exempt from rates.

II.—RATES ON FISHING VESSELS WITHIN THE RATING LIMITS.

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	s.	d.	<i>Bridport.</i>
For every sailing fishing boat including those fitted with auxiliary motor power each time - - - - -	0	3	
Or in full of rates per annum payable in advance - - -	10	0	
Fishing boats propelled by steam or other mechanical power except auxiliary motor power to be rated as vessels.			

III.—RATES OR TOLLS IN RESPECT OF ANIMALS OR GOODS SHIPPED
UNSHIPPED OR TRANSHIPPED WITHIN THE RATING LIMITS OR AT
ANY QUAY OR OTHER WORK BELONGING OR LEASED OR SITUATE
UPON LAND BELONGING OR LEASED TO THE COMMISSIONERS.

	s.	d.
Aerated waters per dozen bottles - - - - -	0	0½
Agricultural implements:—		
Carts each - - - - -	1	0
Harrows each - - - - -	0	1
Ploughs each - - - - -	0	1
Scythes per dozen - - - - -	0	1
Shovels per dozen - - - - -	0	1
Spades per dozen - - - - -	0	1
Wheelbarrows each - - - - -	0	1
Unenumerated each - - - - -	0	1
Ale beer or porter in cask per 54 gallons - - - - -	0	6
„ „ „ 36 „ - - - - -	0	4
„ „ „ 18 „ - - - - -	0	2
„ „ bottled per dozen bottles - - - - -	0	1
Animals:—		
Asses each - - - - -	0	3
Bulls each - - - - -	1	0
Calves each - - - - -	0	3
Cows each - - - - -	1	0
Dogs each - - - - -	0	2
Horses each - - - - -	1	0
Lambs per score - - - - -	0	3
Mules each - - - - -	0	6
Pigs each - - - - -	0	1
Sheep per score - - - - -	0	4
Unenumerated each - - - - -	0	3
Ashes per cwt. - - - - -	0	6
Asphalte per ton - - - - -	1	0
Barrels empty each - - - - -	0	2
Baskets over 12-in. diameter per dozen - - - - -	0	1½
„ under 12-in. diameter per dozen - - - - -	0	1

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							s.	d.
Bicycles per dozen	-	-	-	-	-	-	2	0
Biscuits per cwt.	-	-	-	-	-	-	0	2
Blubber per ton	-	-	-	-	-	-	1	0
Boats each	-	-	-	-	-	-	2	0
Books per ton	-	-	-	-	-	-	3	4
Boots and shoes per pair	-	-	-	-	-	-	0	0 $\frac{1}{2}$
Boxes empty each	-	-	-	-	-	-	0	1
Brass per ton	-	-	-	-	-	-	2	0
Bread per cwt.	-	-	-	-	-	-	0	2
Bricks or tiles per 1,000	-	-	-	-	-	-	2	6
Brooms per gross	-	-	-	-	-	-	1	0
Brushes per gross	-	-	-	-	-	-	1	0
Buckets per gross	-	-	-	-	-	-	2	0
Candles tallow per cwt.	-	-	-	-	-	-	0	1
„ wax per cwt.	-	-	-	-	-	-	0	1
Canvas per cwt.	-	-	-	-	-	-	0	2
Carriages:—								
Four wheels each	-	-	-	-	-	-	5	0
Two wheels each	-	-	-	-	-	-	2	6
Cement per ton	-	-	-	-	-	-	1	0
Chalk per ton	-	-	-	-	-	-	0	3
Chemicals:—								
Alkali per ton	-	-	-	-	-	-	1	0
Alum per ton	-	-	-	-	-	-	1	0
Bleaching powder per ton	-	-	-	-	-	-	1	0
Chloride of lime per ton	-	-	-	-	-	-	0	4
Kelp per ton	-	-	-	-	-	-	1	0
Saltpetre per cwt.	-	-	-	-	-	-	0	2
Unenumerated per ton	-	-	-	-	-	-	0	6
Chimney tops per dozen	-	-	-	-	-	-	0	3
Cider per 54 gallons	-	-	-	-	-	-	0	8
Clay per ton	-	-	-	-	-	-	0	6
Clocks each	-	-	-	-	-	-	0	3
Cloth haberdashery and millinery per cwt.	-	-	-	-	-	-	0	1
Coal coke &c.:—								
Cinders per ton	-	-	-	-	-	-	0	6
Coal (house) per ton	-	-	-	-	-	-	1	2
Coal (steam and gas) per ton	-	-	-	-	-	-	0	7
Coke per ton	-	-	-	-	-	-	0	9
Patent fuel per ton	-	-	-	-	-	-	1	0
Peat per ton	-	-	-	-	-	-	0	3
Copper per ton	-	-	-	-	-	-	5	0
Cordage or cables (tarred or not) per ton	-	-	-	-	-	-	2	0
Cork and corkwood per ton	-	-	-	-	-	-	2	6

Corn meal &c. :—

	s.	d.	A.D. 1918.
Barley per quarter - - - - -	0	3	<i>Bridport.</i>
Beans per quarter - - - - -	0	3	
Bran per sack of 4 bushels - - - - -	0	1	
Flour per sack of 4 bushels - - - - -	0	3	
Indian corn per quarter - - - - -	0	3	
„ meal per sack of 4 bushels - - - - -	0	3	
Malt per quarter - - - - -	0	4	
Oatmeal per sack of 4 bushels - - - - -	0	3	
Oats per quarter - - - - -	0	3	
Peas per quarter - - - - -	0	3	
Rye per quarter - - - - -	0	3	
Wheat per quarter - - - - -	0	3	
Unenumerated per quarter - - - - -	0	4	
Cotton per cwt. - - - - -	0	3	
„ wool per ton - - - - -	1	0	
Crystal per ton - - - - -	2	0	
Drugs per cwt. - - - - -	0	4	
Dye stuffs :—			
Bark per ton - - - - -	1	0	
Cochineal per cwt. - - - - -	1	0	
Cutch per ton - - - - -	1	0	
Indigo per cwt. - - - - -	0	3	
Unenumerated per ton - - - - -	1	0	
Dynamite per ton - - - - -	6	0	
Earthenware per ton - - - - -	1	0	
Eggs per 1,200 - - - - -	0	6	
Emery per cwt. - - - - -	0	1½	
Feathers per cwt. - - - - -	0	6	
Felt per ton - - - - -	1	0	
Fish :—			
Crabs per dozen - - - - -	0	0½	
Herrings imported fresh per 100 - - - - -	0	1	
„ exported cured per 100 - - - - -	0	1	
Lobsters per dozen - - - - -	0	1	
Mackerel per 104 - - - - -	0	1	
Mussels per bushel - - - - -	0	1	
Oysters per 1,000 - - - - -	0	1½	
Salmon per cwt. - - - - -	0	2½	
Sprats per bushel - - - - -	0	1	
Unenumerated fresh per cwt. - - - - -	0	1	
„ in tins bottles &c. per cwt. - - - - -	0	2	
Fishing goods :—			
Lines and twines cotton per ton - - - - -	2	0	
„ „ flax per ton - - - - -	2	0	

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Bridport.

Fishing goods—*continued*.

							s.	d.
Lines and twines hemp per ton	-	-	-	-	-	-	2	0
Nets cotton per ton	-	-	-	-	-	-	2	0
„ hemp per ton -	-	-	-	-	-	-	2	0
All other netting per ton	-	-	-	-	-	-	2	0
Flax per cwt.	-	-	-	-	-	-	0	3
Fruit fresh all kinds per cwt.	-	-	-	-	-	-	0	2
„ dried „ „	-	-	-	-	-	-	0	2
Furniture household per 10l. value	-	-	-	-	-	-	1	0
Game:—								
Deer each	-	-	-	-	-	-	1	0
Hares per dozen	-	-	-	-	-	-	0	1
Rabbits per dozen	-	-	-	-	-	-	0	0½
Unenumerated per dozen	-	-	-	-	-	-	0	1
Ginger per cwt.	-	-	-	-	-	-	0	2
„ preserved per cwt.	-	-	-	-	-	-	0	3
Glass:—								
Bottles per gross	-	-	-	-	-	-	0	3
Window per ton	-	-	-	-	-	-	0	4
Glue per cwt.	-	-	-	-	-	-	0	4
Grates stoves per ton	-	-	-	-	-	-	1	6
Grease per ton	-	-	-	-	-	-	1	0
Groceries:—								
Butter per cwt.	-	-	-	-	-	-	0	3
Cheese per cwt.	-	-	-	-	-	-	0	4
Chocolate per cwt.	-	-	-	-	-	-	0	6
Cocoa per cwt.	-	-	-	-	-	-	0	3
Coffee per cwt.	-	-	-	-	-	-	0	3
Lard per cwt.	-	-	-	-	-	-	0	2
Molasses per cwt.	-	-	-	-	-	-	0	1
Rice per cwt.	-	-	-	-	-	-	0	1
Sugar per cwt.	-	-	-	-	-	-	0	1
Tea per cwt.	-	-	-	-	-	-	0	3
Unenumerated per cwt.	-	-	-	-	-	-	0	3
Gunpowder per ton	-	-	-	-	-	-	6	0
Hair plasterers per cwt.	-	-	-	-	-	-	0	1
„ other kinds per cwt.	-	-	-	-	-	-	0	4
Hardware per cwt.	-	-	-	-	-	-	0	2
Hats per dozen	-	-	-	-	-	-	0	2
Hay per ton	-	-	-	-	-	-	1	0
Hemp per cwt.	-	-	-	-	-	-	0	3
Hides and skins:—								
Calf per score	-	-	-	-	-	-	0	3
Hare or rabbit per score	-	-	-	-	-	-	0	1

Hides and skins— <i>continued</i> .							s.	d.	A.D. 1918.
Sheep or kid per score	-	-	-	-	-	-	0	3	<u>Bridport.</u>
All others per ton	-	-	-	-	-	-	2	0	
Honey per cwt.	-	-	-	-	-	-	0	3	
Hops per cwt.	-	-	-	-	-	-	0	6	
Ice per ton	-	-	-	-	-	-	0	6	
Iron steel &c :—									
Anchors per ton	-	-	-	-	-	-	2	0	
Bar per ton	-	-	-	-	-	-	1	0	
Bolts per ton	-	-	-	-	-	-	1	0	
Cables per ton	-	-	-	-	-	-	2	0	
Chains per ton	-	-	-	-	-	-	2	0	
Nails per ton	-	-	-	-	-	-	1	8	
Nuts per ton	-	-	-	-	-	-	1	0	
Pig all kinds per ton	-	-	-	-	-	-	0	6	
Rails per ton	-	-	-	-	-	-	1	0	
Screws per ton	-	-	-	-	-	-	1	8	
Wire per ton	-	-	-	-	-	-	2	0	
Old iron per ton	-	-	-	-	-	-	1	0	
Unenumerated per ton	-	-	-	-	-	-	1	8	
Jute per cwt.	-	-	-	-	-	-	0	2	
Lead :—									
Black per cwt.	-	-	-	-	-	-	0	1	
Sheet per ton	-	-	-	-	-	-	0	6	
Shot per ton	-	-	-	-	-	-	0	6	
Tubing per ton	-	-	-	-	-	-	0	6	
Old lead per ton	-	-	-	-	-	-	1	0	
Unenumerated per ton	-	-	-	-	-	-	0	2	
Leather per cwt.	-	-	-	-	-	-	0	3	
Lime per ton	-	-	-	-	-	-	0	6	
Loam per ton	-	-	-	-	-	-	0	3	
Machinery per ton	-	-	-	-	-	-	2	0	
Manures :—									
Bones per ton	-	-	-	-	-	-	1	0	
Dung per ton	-	-	-	-	-	-	0	1	
Guano per ton	-	-	-	-	-	-	1	0	
Gypsum per ton	-	-	-	-	-	-	1	0	
Superphosphates per ton	-	-	-	-	-	-	1	0	
Unenumerated per ton	-	-	-	-	-	-	0	3	
Marble per ton	-	-	-	-	-	-	3	0	
Mats per dozen	-	-	-	-	-	-	0	0 $\frac{1}{2}$	
Mats with dunnage per dozen	-	-	-	-	-	-	0	0 $\frac{1}{2}$	
Meat :—									
Fresh per cwt.	-	-	-	-	-	-	0	2	
Salted per cwt.	-	-	-	-	-	-	0	2	

A.D. 1918.	Meat—continued.	s.	d.
Bridport.	Extract of per cwt. -	0	6
	Bacon and ham per cwt. -	0	2
	Tinned per cwt. -	0	2
	Motor cars each -	5	0
	Motor cycles each -	1	0
	Musical instruments per ton -	5	0
	Nuts :—		
	Chestnuts per bushel -	0	1
	Cocoanuts per 100 -	0	1
	Table per bushel -	0	1
	Oakum per ton -	2	6
	Ochre per cwt. -	0	1
	Oils per ton -	2	0
	Oilcake per ton -	2	0
	Ores :—		
	Antimony per ton -	2	0
	Copper per ton -	1	0
	Iron per ton -	0	2
	Lead per ton -	1	0
	Manganese per ton -	0	3
	Nickel per ton -	1	0
	Tin per ton -	1	0
	Zinc per ton -	1	0
	Unenumerated per ton -	0	3
	Paints :—		
	Anti-fouling composition per ton -	1	0
	Patent driers per ton -	1	0
	Turpentine per ton -	1	0
	Varnish per ton -	1	0
	Unenumerated per ton -	1	0
	Papers :—		
	Bags per cwt. -	0	2
	Brown and rough per cwt. -	0	2
	Printing per cwt. -	0	2
	Stationery per cwt. -	0	2
	Perry per pipe of 108 gallons -	1	4
	Pewter per ton -	2	0
	Pictures under 2 feet square each -	0	1
	„ over 2 feet and under 4 feet square each -	0	2
	„ 4 feet square and upwards each -	0	3
	Pipes :—		
	Drain under 3-in. diameter per 1,000 -	0	3
	„ above „ „ -	0	6

							s.	d.	A.D. 1918.
Pipes— <i>continued</i> .									
Glazed per ton	-	-	-	-	-	-	0	2	<i>Bridport.</i>
Tobacco per gross	-	-	-	-	-	-	0	1	
Pitch per ton	-	-	-	-	-	-	0	6	
Plants nursery and garden all kinds per score	-	-	-	-	-	-	0	1	
Plaster of Paris per ton	-	-	-	-	-	-	1	0	
Poultry per dozen	-	-	-	-	-	-	0	1	
Rags and old ropes per ton	-	-	-	-	-	-	0	10	
Ropes new per ton	-	-	-	-	-	-	1	0	
Rosin per ton	-	-	-	-	-	-	1	8	
Saddlery per cwt.	-	-	-	-	-	-	0	3	
Sand or gravel for ballast up to two-thirds registered tonnage									
per ton	-	-	-	-	-	-	0	3	
„ „ cargo—									
Fine per ton	-	-	-	-	-	-	1	0	
Coarse per ton	-	-	-	-	-	-	0	6	
Salt:—									
Bar per ton	-	-	-	-	-	-	1	0	
Fresh per ton	-	-	-	-	-	-	1	0	
Coarse for curing fish per ton	-	-	-	-	-	-	1	0	
Seeds per quarter	-	-	-	-	-	-	0	3	
Sewing machines each	-	-	-	-	-	-	0	1	
Slates:—									
Roofing per 1,000	-	-	-	-	-	-	1	0	
Writing per gross	-	-	-	-	-	-	0	2	
All other per ton	-	-	-	-	-	-	1	0	
Snuff per cwt.	-	-	-	-	-	-	0	1	
Soap per cwt.	-	-	-	-	-	-	0	1	
Starch per cwt.	-	-	-	-	-	-	0	3	
Stones:—									
Granite per ton	-	-	-	-	-	-	0	6	
Grindstone per ton	-	-	-	-	-	-	1	0	
Hearth per ton	-	-	-	-	-	-	0	3	
Limestone per ton	-	-	-	-	-	-	0	1	
Macadam per ton	-	-	-	-	-	-	0	6	
„ tarred per ton	-	-	-	-	-	-	0	6	
Millstones per ton	-	-	-	-	-	-	1	0	
Paving per ton	-	-	-	-	-	-	1	0	
Flag per ton	-	-	-	-	-	-	1	0	
Scythe per 100	-	-	-	-	-	-	1	0	
Unenumerated per ton	-	-	-	-	-	-	1	0	
Stoneware per cwt.	-	-	-	-	-	-	0	1	
Straw per ton	-	-	-	-	-	-	0	6	
Stucco per ton	-	-	-	-	-	-	0	6	
Tallow per ton	-	-	-	-	-	-	1	0	

A.D. 1918.	Tar :—	s.	d.
<i>Bridport.</i>	Coal per barrel of 31½ gallons - - - - -	0	2
	Archangel per barrel of 31½ gallons - - - - -	0	3
	Tin per ton - - - - -	2	0
	Tobacco :—		
	Leaf per cwt. - - - - -	0	3
	Manufactured per cwt. - - - - -	0	4
	Cigars and cigarettes per cwt. - - - - -	0	4
	Toys per ton - - - - -	2	0
	Tricycles per dozen - - - - -	2	6
	Vegetables :—		
	Carrots per ton - - - - -	1	0
	Onions per ton - - - - -	1	0
	Potatoes per ton - - - - -	1	0
	Turnips per ton - - - - -	0	3
	Unenumerated per ton - - - - -	0	6
	Vinegar per 20 gallons - - - - -	0	2
	Whalebone or whale fins per ton - - - - -	3	4
	Whitening per ton - - - - -	1	0
	Wines and spirits per pipe of 108 gallons - - - - -	2	0
	Wood :—		
	Fir or pine battens and deals laths and boards per load -	0	9
	Ditto per standard - - - - -	1	10½
	Doors per dozen - - - - -	0	6
	Firewood per 50 cubic feet - - - - -	0	6
	Greenheart per 50 cubic feet - - - - -	1	0
	Handles broom and brush per 100 - - - - -	0	3
	Handspikes per 100 - - - - -	0	6
	Hoops per 100 - - - - -	0	0½
	Oak per 50 cubic feet - - - - -	2	0
	Oars per dozen - - - - -	0	3
	Pit props per 50 cubic feet - - - - -	0	6
	Sleepers per 50 cubic feet - - - - -	0	6
	Staves barrel per ton - - - - -	1	0
	Treenails per 1,000 - - - - -	0	3
	Wheels per pair - - - - -	0	3
	Unenumerated per 50 cubic feet - - - - -	0	6
	Wool per ton - - - - -	2	0
	Yarn of all kinds per cwt. - - - - -	0	4
	Zinc per ton - - - - -	1	0

Notes with reference to the Foregoing.

1. For all articles not specified in this part of the schedule sums may be charged equal to the rates payable in respect of goods

specified therein which are as nearly as may be of like nature package and quantity. A.D. 1918.
Bridport.

2. The term "package" when used in this schedule includes any crate sack hamper bundle or other article or means wherein or whereby the commodity charged is conveyed.

3. Goods of all descriptions rated by weight shall be charged according to gross weight Fractional parts of any weight measure number or value shall be charged proportionately and the minimum charge for a single package shall be one penny A "ton" shall mean either one ton dead weight or forty cubic feet by measurement at the option of the Commissioners.

4. All empty boxes barrels sacks and packages returned to the original shipper within three months from the date of import are exempted from duties.

5. All goods landed from any vessel and re-shipped in the same or another vessel in the original packages and without being transferred from the lander or if the said goods have been put into other packages from the original packages having been destroyed or damaged shall only pay duties on landing and may be re-shipped in the same or another vessel upon her departure without paying duties again.

6. If any goods for which rates shall have been paid when loaded shall from any accident or otherwise be unloaded no rates shall be charged a second time for such goods on being re-loaded.

IV.—RATES FOR THE USE OF CRANES WEIGHING MACHINES BEACHING GROUND LAYERAGE AND WET AND DRY DOCKS BELONGING TO THE COMMISSIONERS.

1. Quays.

For each ton of goods which shall remain in any shed or on any of the quays for a longer time than twenty-four hours the sum of twopence per ton for each day during which such goods shall remain after the first twenty-four hours.

2. Cranes.

				£	s.	d.
All goods or packages per ton	-	-	-	0	0	4

3. Weighing Machines.

For goods weighed for each ton or part of a ton	-	-	0	0	2
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4. Charges for Use of Beaching Ground.

For every fishing or other boat beached or laid up on ground provided for the purpose by the Commissioners payable in advance per off season as same may be fixed by the Commissioners	-	-	-	0	5	0
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A.D. 1918.	Each additional month or part thereof beyond said off	£	s.	d.
<i>Bridport.</i>	season or at any other time - - - -	0	1	0
	For every other vessel beached or laid up for repairs or other purposes payable in advance for every month or part thereof:—			
	Vessels not exceeding 50 tons of registered tonnage	0	10	0
	Vessels exceeding 50 tons of registered tonnage -	1	0	0

5. *Extra Layerage and Vessels laying up.*

Sailing steam or other vessels may remain within the rating limits free of charge for a period of six weeks and for any period beyond six weeks a charge of one penny per registered ton per week or part of a week will be made.

6. *Rates for Use of Wet and Dry Docks Slipways and Floating Docks belonging to the Commissioners.*

Such reasonable charges as the Commissioners may think fit.

V.—RATES ON PASSENGERS AND PASSENGERS' LUGGAGE.

s. d.

For every passenger or other person (not being a member of the crew) who shall use any of the quays or works of the Commissioners for the purpose of landing from or embarking on board any vessel for each time a sum not exceeding—

Above twelve years of age	-	-	-	-	0	2
Under twelve years of age	-	-	-	-		Free
For each article of luggage not carried by the passenger	-				0	1
The master and every member of the crew of any vessel within the limits of this Order shall be entitled to use any of the quays belonging to the Commissioners free of charge for the purpose of landing from or embarking on board his vessel.						

SANDOWN PIER.

Sandown. Order for the transfer of the Sandown Pier to the Urban District Council of Sandown and for conferring further powers on that Council.

Preliminary.

Short title. 1. This Order may be cited as the Sandown Pier Order 1918.

A.D. 1918.

2. This Order shall come into operation upon the day when the Act confirming this Order is passed and that day is in this Order referred to as "the commencement of this Order."

Sandown.
Commence-
ment of
Order.

3.—(1) In this Order unless the context otherwise requires—

Interpreta-
tion.

"The district" means the urban district of Sandown;

"The Council" means the urban district council of Sandown;

"The district fund" and "the general district rate" mean respectively the district fund and general district rate of the district;

"The Harbours Clauses Act 1847" means the Harbours Docks and Piers Clauses Act 1847;

"The Company" means the Sandown Pier (Extension) Company Limited;

"The Order of 1874" means the Sandown Pier (Extension) Order 1874;

"The Order of 1893" means the Sandown Pier Order 1893;

"The Order of 1903" means the Sandown Pier Order 1903;

"The Pier Orders" mean the Orders of 1874 1893 and 1903;

"The pier" means the pier known as Sandown Pier situate on the foreshore at Sandown in the Isle of Wight lately belonging to the Company under the powers conferred by the Pier Orders together with all works and conveniences now or hereafter connected therewith;

"The pier undertaking" means and includes the pier and the undertaking transferred to the Council or authorised by this Order;

"The pier revenue" means the revenue of the pier undertaking;

"The date of transfer" means the thirty-first day of December one thousand nine hundred and seventeen.

(2) In the application to this Order of the Harbours Clauses Act 1847 the expressions "packet boat or Post Office packet" and "Post Office bag of letters" used in that Act shall mean respectively a vessel employed by or under the Post Office or the Admiralty for the conveyance under contract of postal packets as defined by the Post Office Act 1908 and a mail bag as defined by the same Act. Provided that nothing in the Harbours Clauses Act 1847 or in this Order shall extend to exempt from rates or duties any such vessel as aforesaid if she also conveys passengers or goods for hire.

Undertakers.

4. The Council shall be the undertakers for carrying this Order into execution.

Undertakers.

A.D. 1918.

Transfer of Pier to the Council.

Sandown.
Transfer of
pier to
Council and
repeal of
Acts.

5.—(1) From and immediately after the commencement of this Order all the estate and interest of the Company in the land and the land covered by water delineated on the map referred to in the section of this Order whereof the marginal note is "Limits" and thereon coloured blue together with the pier erected on part thereof and now known as the Sandown Pier and all rights connected therewith shall be deemed to have been transferred to and be vested in the Council as from the date of transfer and shall subject to the provisions of this Order be held maintained used exercised and enjoyed by the Council as from the date of transfer freed and discharged from all obligations and liabilities of the Company in relation thereto or in connexion therewith other than the debentures issued by the Company which shall continue to be a first charge on the pier undertaking until paid off as hereinafter in this section provided.

(2) For the purpose of completing the title of the Council to the property and rights hereby transferred to them this Order shall be deemed to be a conveyance by the Company to the Council as on the date of transfer.

(3) Immediately after the commencement of this Order the Council shall repay to the holder of the debentures issued by the Company such sums (not exceeding in the aggregate the sum of £2,500) as have already been advanced by him to or for the benefit of the Council on the security of such debentures together with interest thereon at the rate of £5 15s. per centum per annum reckoned from the respective dates of advance until the day of repayment and the said debentures shall upon such repayment as aforesaid become null and void.

(4) As from the date of transfer all estates and interests rights powers privileges and authorities of the Company in over and in respect of or connected with the said land and land covered by water and the pier shall cease and determine and the Company shall be thenceforth freed and discharged from all obligations and liabilities in respect thereof arising after the date of transfer.

(5) The Pier Orders are hereby repealed.

Saving rights
of action.

6. Subject to the provisions of this Order nothing in this Order contained shall be held to prejudice or affect any right or cause of action or suit or any remedy which immediately before the commencement of this Order the Company had against any person or any person had against the Company but all such rights causes suits and remedies may be enforced or prosecuted by or against the Company as if this Order had not been made.

Documents
&c. to be
evidence.

7. All documents books and writings of the Company which if this Order had not been made would have been receivable in evidence

shall be admitted as evidence in all courts of law and equity and elsewhere. A.D. 1918.
Sandown.

Acquisition of Lands.

8. The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845 and so much of those Acts as relates to the purchase and taking of lands otherwise than by agreement and to the entry upon lands by the promoters of the undertaking) are hereby incorporated with this Order and for the purposes of that incorporation the term "special Act" in those Acts means this Order. Incorporation of Lands Clauses Acts.

9. The Council may for the purpose of the pier undertaking by agreement purchase or take on lease any interest in the foreshore of the district and any additional lands which the Council may deem requisite or convenient not exceeding in the whole two acres but nothing in this section shall exempt the Council from any proceedings for nuisance caused or permitted by them on land acquired by them under the power conferred by this section. Power to take lands by agreement.

10. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and this Order grant any easement right or privilege (not being an easement right or privilege of water in which other persons than the grantors have an interest) required for the purposes of this Order in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid. Power to take easements &c. by agreement.

Limits.

11.—(1) The limits within which the Council shall have authority under this Order shall comprise the pier and an area below high-water mark within a distance of one hundred feet measured in any direction from any part of the pier which limits are in this Order termed "the limits of this Order" and the powers of the pier master under this Order shall only be exercised within such limits. Limits.

(2) A map showing by a blue colour the limits of this Order having been signed in triplicate by an assistant secretary to the Board of Trade and one copy thereof having been deposited at the office of that Board a copy thereof shall be deposited at the office of the clerk of the peace for the county of Southampton and the other copy thereof shall be deposited at the office of the clerk to the Council.

(3) In case of any discrepancy between the limits delineated on the said map and the limits described in subsection (1) of this section the said map shall be deemed to be correct and shall prevail.

A.D. 1918.

*Works and Powers.**Sandown.*Power to
maintain and
extend pier.

12.—(1) The Council may maintain repair alter extend improve and enlarge the pier and works connected therewith and may fill in solid material between and around the piles of the pier and may construct alter extend improve and maintain all necessary jetties piers quays slips walls stairs landing places approaches roads causeways gates baulks of timber wharves breastworks warehouses sheds cranes buoys lights moorings beacons lighthouses sewers drains watercourses gas and water pipes electric light and power mains and wires and other works and conveniences in connexion with the pier or the approaches thereto respectively and may also from time to time lay down and maintain rails tramways sidings and turntables on and along the pier and works connected therewith Provided that no building shall be erected on the pier to a greater height than sixty-five feet above the deck of the pier.

(2) No line of rails or tramway constructed under the powers of this Order shall be used for the public conveyance of passengers.

(3) Any electric light and power mains and wires and other works constructed provided and maintained under this Order shall be so constructed used and worked as to prevent any interference with telegraphic communication by means of any telegraphic line belonging to or used by the Postmaster-General.

(4) Nothing in this Order shall extend to or authorise an interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 to 1909 to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of that section.

Works below
high-water
mark not to
be com-
menced with-
out consent
of Admiralty
and War
Office.

13. The Council shall not under the powers of this Order construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Admiralty and the War Department to be signified in writing under the hand of the Secretary of the Admiralty and the Secretary of the War Department respectively and then only according to such plan and under such restrictions and regulations as the Admiralty and the War Department may approve of in writing under hand as last aforesaid and where any such work may have been constructed the Council shall not at any time alter or extend the same without obtaining previously to making any alteration or extension the like consents or approvals If any work be commenced altered extended or completed contrary to the provisions of this section the Admiralty or the War Department may abate and remove the same and restore the site thereof to its former condition at the cost and charge of the Council and the amount of such costs and charges shall be a debt due

from the Council to the Crown and shall be recoverable as a Crown debt or summarily. A.D. 1918.
Sandown.

14. If at any time the Admiralty deems it expedient to order a survey and examination of a work constructed by the Council under this Order on in over through or across tidal lands or tidal water or of the intended site of any such work the Council shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Council to the Crown and be recoverable as a Crown debt or summarily. Survey of
works by
Admiralty.

15. If a work constructed by the Council on in over through or across tidal lands or a tidal water is abandoned or suffered to fall into decay the Admiralty may abate and remove the work or any part of it and restore the site thereof to its former condition at the expense of the Council and the amount of such expense shall be a debt due from the Council to the Crown and be recoverable as a Crown debt or summarily. Abatement
of work
abandoned or
decayed.

16. Any person who wilfully obstructs the Council or any person acting under their authority in setting out the lines of any works authorised by this Order or who pulls up or removes any poles or stakes driven into the ground for the purpose of setting out the lines of those works or any part thereof shall for every such offence be liable to a penalty not exceeding five pounds. Penalty for
obstructing
works.

17.--(1) The Council may deepen dredge scour and excavate any portion of the foreshore and bed of the sea to the extent necessary to secure a sufficient waterway and approach to the pier for vessels using the same. Power to
dredge.

(2) All sand mud and materials dredged up or removed shall be the property of the Council who may sell or otherwise dispose of or remove or deposit the same as they think fit Provided that no sand mud or other materials shall be laid down or deposited in any place below high-water mark outside the limits of the dockyard port of Portsmouth without the consent in writing of the Board of Trade having been first obtained or below high-water mark within the limits of the said dockyard port without the consent of the Admiralty having been first obtained.

(3) All money arising from any sale or other disposition of sand mud and other materials under this section after payment of the expenses connected therewith shall be applied in the same manner as under this Order the pier revenue is to be applied.

18. The Council may erect construct alter and maintain upon the pier and upon any lands vested in or acquired by them under the powers of this Order a concert hall or theatre pavilion recreation and reading rooms shops saloons stalls open and covered sea water swimming and other baths bathing places and cabins together with Power to
construct
and maintain
concert hall
and baths.

A.D. 1918. all necessary waterclosets urinals lavatories and sanitary and other
Sandown. conveniences connected therewith and may furnish and equip the same and may make such reasonable charges as they think fit for the use thereof and admission thereto.

Power to
let concert
hall &c. and
provide en-
tertainments.

19. The Council may in or at any concert hall theatre pavilion band-stand or other buildings on the pier or the approaches thereto provide and carry on or arrange for the provision or carrying on of suitable entertainments exhibitions and amusements (including the sale of programmes and the letting of chairs) or may let any of the aforesaid buildings for the purpose of such entertainments exhibitions or amusements upon such terms and conditions as they may think fit or may let the same for particular entertainments or exhibitions or for meetings.

Rates.

Power to
levy rates.

20.—(1) Sections 25 and 26 of the Harbours Clauses Act 1847 shall not be incorporated with this Order.

(2) From and after the commencement of this Order the Council may subject and according to the provisions of this Order demand receive and recover for the use of the pier and in respect of vessels boats animals fish and goods and for services described in the schedule to this Order any rates not exceeding those specified in that schedule.

Power to
vary exemp-
tions and
compound
for rates.

21. The Council may confer vary or extinguish exemptions from and compound with any person with respect to the payment of rates or charges authorised by this Order but so that no preference be in any case given to any person using the pier under the like circumstances and that anything done under this section shall not prejudice the other provisions of this Order.

Power to
charge
higher rates
at certain
times.

22.—(1) Notwithstanding anything contained in this Order the Council may charge for every person entering upon and using the pier between the hours of six p.m. and ten p.m. on any day on which a concert or other public entertainment (lasting for at least one and a half hours between the said hours of six p.m. and ten p.m.) is held on the pier or in any pavilion building or room for the time being on the pier any sum not exceeding sixpence.

(2) Any person who having already paid the ordinary charge for using the pier remains on the pier after six p.m. on any such day as in the preceding subsection mentioned shall have credit for the sum already paid by him and shall be liable in addition thereto to pay only the difference between the special charge and the sum already paid by him as aforesaid.

(3) The Council shall notwithstanding the progress of any concert or other public entertainment reserve a sufficient passage along the pier for all persons landing or embarking at the pier and that reserved

passage shall be open for use by such persons at the ordinary charge and without payment of the special rate by this section authorised so long as they use the pier as a passage only and do not remain upon it.

A.D. 1918.

Sandown.

(4) A copy of this section shall be exhibited in print at the entrance to the pier and in some conspicuous place or places on the pier.

23.—(1) The Council may on any special occasions but not exceeding twelve days in any one year or for more than three days consecutively close the pier against the public and may if they think fit on such occasions admit any persons to the pier on payment of such special rates of admission not exceeding one shilling for each person as the Council may think fit.

Power to
close pier
on special
occasions.

(2) On all such occasions the Council shall reserve a sufficient passage along the pier from the landing steps to the shore for any persons landing or embarking at the pier the reserved passage to be open for use by those persons at the ordinary charge and without payment of any special rates so long only as they use the pier as a passage and do not remain upon it.

(3) The special rate charged under this section shall be in lieu of and not in addition to the rate specified in the schedule to this Order and any person paying the special rate shall not be liable to pay any further or other rate or sum for admission to the pier on the day for which the special rate is charged.

(4) The Council shall give notice of their intention to close the pier under this section by exhibiting the notice conspicuously at the entrance to the pier during at least two days before the day on which the pier is to be closed.

24. The Council may (so far as the rates specified in the schedule to this Order do not extend) demand and recover such rates or other consideration as they think reasonable for the use of any sheds warehouses buildings weighing machines mooring posts cranes buoys works and conveniences belonging to or provided by the Council or in respect of any services rendered by them in connexion with the pier undertaking.

Rates for
sheds and
warehouses.

25.—(1) The Council may grant to passengers and promenaders or others for the use of the pier (either exclusively or not of any building or room for the time being thereon) pass tickets or family tickets at such rates on such terms and for such periods not exceeding one year as the Council may think fit and may issue books containing any number of pass tickets at a reduced rate and day tickets available for one day or part of a day only but for any number of admissions on such day or part of a day at a reduced rate but so that no preference be given to any person.

Pass and
family
tickets.

A.D. 1918.
Sandown.

(2) The Council shall have power to prescribe the conditions on which pass tickets and family tickets are issued and the persons by whom such tickets may be used.

(3) A pass ticket shall not be transferable and shall not be used by any person except the person to whom it is granted. A pass ticket or family ticket shall not be used otherwise than in accordance with the conditions on which it is issued or after the period limited for its use.

(4) There shall be printed on every pass ticket and family ticket the terms and conditions upon and subject to which the same is issued.

(5) If any person wilfully and with intent to defraud acts in any way in contravention of the provisions of this section or uses or attempts to use any false or counterfeit ticket he shall for each offence be liable to a penalty not exceeding twenty shillings.

Certain fishing vessels under stress of weather exempt from rates.

26. Fishing vessels belonging to countries with which for the time being treaties exist exempting from duties and port charges those vessels when forced by stress of weather to seek shelter in the ports or on the coast of the United Kingdom shall when forced by stress of weather to make use of the pier and not breaking bulk while making use thereof be exempt from rates leviable under this Order.

Exemption of lifeboat crew.

27. All persons going to or returning from any lifeboat or using any apparatus for saving life and being persons either belonging to the crew of the lifeboat or to the coastguard or being persons for the time being actually employed in saving life or in exercising or using the lifeboat or the apparatus for saving life and also all persons brought ashore from any vessel in distress shall at all times have free ingress passage and egress to along and from the pier without payment.

Board of Trade may reduce rates.

28.—(1) The rates to be received by the Council shall be adjusted by them in such a manner that as far as possible the pier revenue shall be sufficient and not more than sufficient for the purposes of the pier.

(2) If at any time it appears to the Board of Trade from the annual account to be sent to them under this Order that the clear annual income derived from the rates leviable by the Council on the average of the then three last preceding years after payment of all expenses and outgoings exceeds the amount sufficient for the purposes of this Order the Board may if in their discretion they think fit reduce the rates leviable under this Order to such amounts as will be sufficient to provide the amount aforesaid and may again at any time raise the rates to any amount not exceeding the rates specified in the schedule to this Order.

Powers of Leasing.

A.D. 1918.

29.—(1) The Council may with the previous consent in writing of and upon such terms conditions and restrictions and for such period as may be sanctioned by the Board of Trade lease to any company corporation or person the whole or part of (a) the pier undertaking or (b) the rates and other charges authorised to be taken by this Order.

Sandown.
Power to
lease under-
taking or
rates.

(2) As from the date of any lease made under the last preceding subsection the lessee during the continuance of and to the extent provided in his lease shall have and may exercise all or any of the powers conferred upon the Council by this Order which the Council have or might exercise under this Order and shall be subject to all the liabilities and obligations to which the Council are subject and shall perform all the duties of the Council under this Order.

(3) No lease made under subsection (1) of this section shall be assignable without the previous consent in writing of the Board of Trade.

(4) The Council shall within one month after the date of any lease made under this section deposit a certified copy thereof with the Board of Trade and shall as from the expiration of that month be liable to a penalty not exceeding twenty pounds for every week or part of a week during which they refuse or neglect to comply with this subsection.

(5) No lease made under this section shall be made in consideration or part consideration of any fine premium or other capital sum.

(6) Nothing in this section shall exempt the Council from their obligation to keep and render accounts and as from the date of any lease made under this section all the provisions of the Acts incorporated with this Order and of this Order as to the keeping delivery and audit of accounts shall apply to and be binding upon as well the lessee as the Council and all moneys received by the Council under or in respect of any such lease shall be deemed to be moneys levied by virtue of and income received under this Order.

30. In addition to any general powers in this Order contained the Council may let for hire or lease for any term not exceeding seven years any sheds warehouses or other buildings separately from any other part of the pier undertaking to any company corporation or person upon such terms pecuniary or otherwise and under such restrictions and conditions as they think fit.

Power to
lease sheds.

Finance.

31. The Council may and shall provide such moneys as may become necessary for the purposes of this Order or any of them and

Power to
Council to
provide

A.D. 1918. of the pier undertaking and the maintenance management and improvement thereof and the payment of expenses in connexion therewith out of the pier revenue or if that shall be insufficient out of the district fund and general district rate or one or other of them save in so far as such moneys shall be properly payable out of moneys authorised by this Order to be borrowed.

—
Sandown.
moneys for
purposes of
Order.

Power to
borrow.

32.—(1) The Council may independently of any other borrowing power from time to time borrow at a rate of interest not exceeding without the consent of the Board of Trade six per centum per annum :—

- (a) Such sum as may be required for the payment of the costs charges and expenses of and incidental to this Order ;
- (b) The sum of two thousand five hundred pounds being the amount to be paid under the provisions of this Order to the holder of the debentures issued by the Company ;
- (c) With the consent of the Board of Trade such further sum or sums as may from time to time be required for the purposes of this Order.

(2) In order to secure the repayment of moneys borrowed for the purposes mentioned in this section and the payment of interest thereon the Council may mortgage or charge as well the district fund and general district rate or either of them as the pier revenue but in such manner that the district fund and general district rate shall only be collaterally liable.

Section 234
of Public
Health Act
not to apply.

33. The power of borrowing money given by this Order shall not be restricted by any of the regulations contained in section 234 of the Public Health Act 1875 and in calculating the amount which the Council may borrow under that Act any sums which they may borrow under this Order shall not be reckoned.

Application
of moneys
borrowed.

34. All moneys borrowed by the Council under the powers of this Order shall be applied only to the purposes for which such moneys are authorised to be borrowed and to which capital is properly applicable.

Mode of
raising
money.

35. The Council may raise all or any moneys which they are authorised to borrow under this Order by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way or partly in another or others Provided that the provisions of this Order relating to sinking funds shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 (Discharge of loan by sinking fund) of that Act.

Form of
mortgages.

36. Sections 236 237 and 238 of the Public Health Act 1875 shall extend and apply to all mortgages granted under this Order.

37. A person lending money to the Council under this Order shall not be concerned to inquire as to the observance by the Council of any of the provisions of this Order or be bound to see to the application or be answerable for any loss or non-application of the money lent or any part thereof.

A.D. 1918.

Sandown.
Protection of
lenders from
inquiry.

38. All moneys borrowed by the Council under the section of this Order whereof the marginal note is "Power to borrow" shall be repaid within the respective periods following (in this Order referred to as "the prescribed periods") (that is to say):—

Periods for
repayment
of moneys
borrowed.

- (a) As to the money borrowed for the purposes (a) mentioned in the said section of this Order within five years from the commencement of this Order;
- (b) As to the money borrowed for the purposes (b) mentioned in the said section of this Order within twenty years from the date of transfer; and
- (c) As to the money borrowed for the purposes (c) mentioned in the said section of this Order within such period from the date of borrowing the same as the Board of Trade may prescribe.

39. The Council shall pay off all moneys borrowed by them on mortgage under the powers of this Order either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment shall be made within twelve months if a yearly instalment or within six months if a half-yearly instalment after the date of borrowing the sum in respect of which it is made and the first payment to the sinking fund shall be made within twelve months after the date of the borrowing the sum in respect of which it is made.

Mode of pay-
ment off of
money
borrowed.

40.—(1) If the Council determine to repay by means of a sinking fund any moneys borrowed under this Order the sinking fund shall be formed and maintained either—

Sinking fund.

- (a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a non-accumulating sinking fund; or
- (b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations by way of compound interest at a rate not exceeding three pounds per centum per annum or such higher rate as may from time to time be approved by the Local Government Board will be sufficient to pay off within the prescribed period

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the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called an accumulating sinking fund.

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest trust moneys or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority as defined by section 34 of the Local Loans Act 1875 but exclusive in every case of the securities of the Council and the Council shall be at liberty from time to time to vary and transpose the investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(4) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the moneys for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by the sinking fund or the part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Council.

(6) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards such annual payments.

(7) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Order shall be paid by the Council in addition to the payments provided for by this Order.

(8) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with (in the case of an accumulating sinking fund) the probable accumulations thereon will not be

sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as that Board may direct.

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(9) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(10) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with (in the case of an accumulating sinking fund) the probable accumulations thereon will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as that Board may approve.

(11) If the amount in any sinking fund at any time together with (in the case of an accumulating sinking fund) the probable accumulations thereon will in the opinion of the Local Government Board be sufficient without any further payments thereto to repay the loan in respect of which it is formed within the prescribed period the Council may with the consent of that Board discontinue the equal annual payments to the sinking fund until that Board otherwise direct.

(12) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Council with the consent of the Local Government Board may determine.

41.—(1) The clerk to the Council shall within twenty-one days after the thirty-first day of March in each year during which any sum is required to be paid as an instalment or annual payment or to be appropriated or paid to a sinking fund in pursuance of the provisions of this Order or in respect of any moneys raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and (if required by that Board) verified by statutory declaration of the clerk to the Council showing the amounts which have been paid as instalments or annual payments or appropriated paid to or invested or applied for the purposes of the sinking fund during the year preceding the making of such return and the description of the securities upon which any investment has been made and also the purposes to which any portion of the sinking fund or investments or of the sums accumulated

Annual
return to
Local
Government
Board.

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Sandown. and the total amount remaining invested at the end of the year.

(2) The clerk to the Council in the event of any wilful default by him in making the return under this section shall for each such offence be liable to a penalty not exceeding twenty pounds which shall be paid to the Local Government Board and shall be recoverable by that Board by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by that Board out of the High Court.

(3) If it appears to the Local Government Board by the return under this section or otherwise that the Council have failed to pay any instalment or annual payment or to appropriate or pay the sum required for any sinking fund under this Order or have applied any portion of any sinking fund to any purposes other than those authorised by this Order the Local Government Board may by order direct that a sum not exceeding double the amount in respect of which such default shall have been made shall be paid or applied as in such order mentioned and such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

Power to
re-borrow.

42.—(1) The Council shall have power—

(a) to borrow for the purpose of paying off any moneys previously borrowed under this Order which are intended to be forthwith repaid; or

(b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying moneys previously borrowed under this Order and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(a) by instalments or annual payments; or

(b) by means of a sinking fund; or

(c) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

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43.—(1) Subject to the provisions of this section any mortgagee of the Council in respect of a mortgage under this Order may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver.

(2) The application for the appointment of a receiver shall be made to the High Court and the Court if it thinks fit may appoint a receiver on such terms as it thinks fit and may at any time discharge the receiver and otherwise exercise full jurisdiction over him:

Provided that no such application shall be entertained unless the amount of arrears due to the applicant or in the case of a joint application by two or more mortgagees to the applicants collectively be not less than five hundred pounds in the whole.

44. The Council may if they think fit for the purpose of forming and maintaining a contingency fund not exceeding at any time the sum of five hundred pounds to meet any extraordinary claim or demand or any unforeseen accident or extraordinary damage which may happen or be caused to the pier appropriate and set apart subject to the provisions of this Order as to application of revenue any amount which they think fit in any year out of the revenue received under this Order and shall deposit any such amount in some joint stock bank to be increased by accumulation in the way of compound interest or otherwise or shall invest the same in securities upon which trust moneys may be invested (other than securities of the Council) until required for any of the aforesaid purposes.

Contingency
fund.

45. The Council shall apply the pier revenue for the purposes and in the order following and not otherwise (that is to say):—

Application
of pier
revenue.

(1) In paying the costs of and connected with the preparation and obtaining of this Order and otherwise incurred in reference thereto except in so far as they may be provided for out of moneys borrowed by the Council for the purpose under this Order:

(2) In paying the expenses properly chargeable to revenue of conducting managing and maintaining the pier undertaking:

(3) In paying year by year the interest as it accrues due on money borrowed under this Order:

(4) In paying the instalments as they become due in respect of any principal money borrowed under this Order and payable by instalments and in providing in accordance with the

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terms of this Order a sinking fund for the discharge of any principal money so borrowed and not repayable by instalments :

- (5) In making such payments (if any) as the Council think fit into a contingency fund established under the provisions of this Order ;
- (6) In repaying to the district fund all moneys and interest paid thereout for the purposes of the pier undertaking whether in respect of money borrowed or otherwise :
- (7) The surplus (if any) after providing for the purposes aforesaid shall be applied by the Council in the general improvement of the pier undertaking.

Making up
deficiency
in pier
revenue.

46. In case the pier revenue shall in any year be insufficient for the purpose of defraying the costs charges and expenses of the Council with respect to the pier undertaking the Council shall include the amount of such insufficiency in their estimate for that or the following year and defray the same out of the general district rate but in such a manner and so that the general district rate shall not be liable in any year to contribute for the purposes of the pier undertaking including the repayments of moneys borrowed under this Order or any interest thereon a sum greater than the amount produced by a general district rate of sixpence in the pound.

Separate
account.

47. The Council shall keep a separate account to be called the "Pier Account" of all the receipts payments credits and liabilities on capital and revenue accounts respectively in respect of the execution by them of this Order and such account shall be subject to the same provisions as to audit and otherwise as other accounts of the Council.

Annual
account to
be sent to
Board of
Trade.

48.--(1) The Council shall within one month after sending to the clerk of the peace the copy of their annual account in abstract send a copy of the same to the Board of Trade and section 16 of the General Pier and Harbour Act 1861 Amendment Act shall apply to and include any such account.

(2) The Council shall as from the expiration of that month be liable to a penalty not exceeding twenty pounds for every week or part of a week during which they refuse or neglect to comply with this section.

(3) The account shall be made up to the end of the thirty-first day of March in each year.

(4) In addition to the account to be lodged with the clerk of the peace in accordance with section 50 of the Harbours Clauses Act 1847 the Council shall also lodge with him a full and detailed statement showing the capital expenditure made by the Council during the year covered by the account.

49. Notwithstanding anything in this Order the Council shall not under the powers of this Order borrow any money (other than money required for paying the costs charges and expenses of this Order as hereinafter defined) during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

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Restriction
on exercise of
borrowing
powers
during war.

Byelaws.

50.—(1) The byelaws which may from time to time be made by the Council in exercise of the power in that behalf conferred on them by section 83 of the Harbours Clauses Act 1847 may provide for imposing a penalty not exceeding forty shillings for the breach or non-observance of any of the byelaws.

Byelaws.

(2) No byelaw shall come into operation until it has received the allowance and confirmation of the Board of Trade and that allowance and confirmation shall be sufficient for all purposes.

(3) Sections 84 and 85 of the Harbours Clauses Act 1847 shall not be incorporated with this Order.

Life-saving Apparatus.

51.—(1) Sections 16 to 19 of the Harbours Clauses Act 1847 shall not be incorporated with this Order.

Provision for
life-saving
apparatus.

(2) The Council shall whenever required by the Board of Trade provide at their own expense and to the satisfaction of the Board of Trade a site near the pier and build on that site a house or other proper accommodation for a lifeboat rocket apparatus and other life-saving apparatus.

(3) If the Council fail to comply with this section they shall be liable to a penalty not exceeding ten pounds for every month during which the failure continues.

52. The officers of the coastguard and all other persons for the time being actually employed in connexion with any apparatus for saving life may either permanently or temporarily without payment attach or cause to be attached to any part of the pier spars and other apparatus for saving life and may also either in course of using or of exercising the apparatus for saving life fire rockets over the pier and quay.

Life-saving
apparatus
may be
attached to
pier.

53. The Council shall at all times keep at convenient places on the pier and in obedience to any requirements which may be made by the Board of Trade lifebuoys and lifelines in good order and fit and ready for use.

Lifebuoys to
be kept.

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Lights.

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As to lights.

54.—(1) The Council shall within six months from the commencement of this Order exhibit in such place or places as may be required from sunset to sunrise and according to the requirements of the traffic and the season of the year such light or lights (if any) and shall take such other steps for the prevention of danger to navigation as shall from time to time be directed by the Corporation of Trinity House Deptford Strond and shall apply to that Corporation for such directions.

(2) The Council shall be liable to a penalty not exceeding ten pounds for every day during which they omit so to apply or refuse or neglect to observe or comply with any such directions.

Provision
against
danger to
navigation.

55. In case of injury to or destruction or decay of the pier or works connected therewith or any part thereof the Council shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Corporation of Trinity House Deptford Strond and shall apply to that Corporation for directions as to the means to be taken and the Council shall be liable to a penalty not exceeding ten pounds for every day during which they omit so to apply or refuse or neglect to obey any direction given in reference to the means to be taken.

Miscellaneous.

Meters and
weighers.

56. The Council shall have the appointment of meters and weighers within the limits of this Order.

Appoint-
ment of
officers to
enforce bye-
laws and
regulations.

57. The Council may appoint officers for securing the observance of the byelaws and regulations made by the Council under this Order in respect of the pier and may from time to time procure such officers to be sworn as constables for that purpose but no such officers shall act as constables until so sworn in and unless in uniform or provided with a warrant.

Application
of Act 10 & 11
Vict. c. 27.

58. For all the purposes of the Harbours Clauses Act 1847 this Order shall be deemed the special Act but sections 6 to 13 of that Act shall not be incorporated with this Order.

Recovery of
penalties.

59. All penalties under this Order shall be recovered and applied as penalties are recoverable and applicable under the Harbours Clauses Act 1847.

Officers
exempt from
rates.

60. Officers of the Board of Trade and police officers acting in the execution of their duty shall at all times have free ingress passage and egress to along and from the pier without payment.

Sandown.

61. Part V. of the Harbours and Passing Tolls &c. Act 1861 shall be incorporated with this Order.

Harbours and
Passing Tolls
&c. Act.

62. The Council shall within the limits of this Order be a local lighthouse authority within the meaning of the Merchant Shipping Act 1894.

Local light-
house autho-
rity.

63. Nothing in this Order affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Council to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

Crownrights.

64. Notwithstanding the provisions contained in the section of this Order of which the marginal note is "Crown rights" or in any public statute His Majesty and His lessees for their respective interests may work any minerals belonging to the Crown under or adjacent to the lands and works of the Council authorised to be taken or constructed by this Order but in the event of any such right being at any time intended to be exercised the provisions of the Railways Clauses Consolidation Act 1845 relating to notice and compensation with respect to mines lying under or near the railway shall apply when the workings reach a point the distance of which from the nearest of such lands would not if measured horizontally exceed one half the depth of such workings below the surface level of such lands and in the application of those provisions the term "Company" shall mean the Council and the term "railway" shall mean the said lands and works.

Crown
minerals.

65. The pier and approaches thereto shall be deemed to be for all purposes within the parish and urban district of Sandown in the county of Southampton.

Pier to be
in the
district.

66. All costs charges and expenses of and incidental to the preparing and obtaining of this Order and otherwise incurred in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council out of the pier revenue or out of the rate authorised by the section of this Order the marginal note whereof is "Making up deficiency in pier revenue" or out of moneys borrowed for the purpose under this Order.

Costs of
Order.

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SCHEDULE to which the foregoing Order refers.

PART I.

RATES ON PASSENGERS.

	s.	d.
For every passenger or other person landing on the pier or embarking to go on board any vessel boat or wherry from the pier or any part thereof for each and every time any sum not exceeding - - - - -	0	4
For every person using the pier or approaches thereto for the purpose of walking for exercise pleasure or otherwise for each and every time any sum not exceeding - - - - -	0	3
For every bath or sedan chair (including the person in charge) taken on the pier for each time any sum not exceeding - - - - -	0	4
For every perambulator (including the person in charge) taken on the pier for each time any sum not exceeding - - - - -	0	3

BATHS.

For every person bathing from the pier any sum (inclusive of the pier toll) not exceeding - - - - -	0	6
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RATES ON PASSENGER'S LUGGAGE.

For every trunk portmanteau box parcel or other package whatsoever within the description of luggage (other than luggage carried by a passenger) shipped or unshipped at or within the pier the rates following (viz.):—

	s.	d.
Not exceeding 28 lbs. - - - - -	0	2
Over 28 lbs. and not exceeding 84 lbs. - - - - -	0	4
Over 84 lbs. and not exceeding 112 lbs. - - - - -	0	5
Over 112 lbs. and not exceeding 140 lbs. - - - - -	0	6
Over 140 lbs. and not exceeding 196 lbs. - - - - -	0	7
Over 196 lbs. and not exceeding 2 cwt. - - - - -	0	8
And for every 28 lbs. weight in addition - - - - -	0	1

PART II.

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RATES ON VESSELS.

Sandown.

For every ship or vessel which shall load or unload at or otherwise make use of the pier the several rates following (viz.) :—

Under 100 tons	-	-	2d.	per ton registered tonnage.
Of 100 tons but not exceeding	}	-	3d.	" " "
150 tons				
Of 150 tons but not exceeding	}	-	4d.	" " "
250 tons				
Upwards of 250 tons	-	-	6d.	" " "

RATE FOR STEAM TUGS FOR TOWING PURPOSES.

			s.	d.
To or from the pier	-	-	2	0 each way.

MOORINGS.

When moorings are supplied by the Council a charge of 1s. per day or 3s. per week may be made.

RATES ON GOODS SHIPPED UNSHIPPED OR TRANSHIPPED AT THE PIER.

							s.	d.
Agricultural implements per ton	-	-	-	-	-	-	1	4
Ale porter cider or vinegar per 18 gallons	-	-	-	-	-	-	0	1
Animals :—								
Horses each	-	-	-	-	-	-	0	2
Oxen and cows each	-	-	-	-	-	-	0	2
Donkeys each	-	-	-	-	-	-	0	1
Sheep per score	-	-	-	-	-	-	0	6
Lambs per score	-	-	-	-	-	-	0	3
Pigs and calves each	-	-	-	-	-	-	0	0½
Dogs each	-	-	-	-	-	-	0	1
Asphalt per ton	-	-	-	-	-	-	0	6
Bark per ton	-	-	-	-	-	-	0	8
Bed or bedstead each	-	-	-	-	-	-	0	2
Birds each	-	-	-	-	-	-	0	0½
Biscuits per ton	-	-	-	-	-	-	1	4
Ditto per cwt.	-	-	-	-	-	-	0	2
Bottles empty per gross	-	-	-	-	-	-	0	3
Boxes packages or parcels per 56 lbs.	-	-	-	-	-	-	0	1
Bricks per 1,000	-	-	-	-	-	-	0	8
Brooms hair per gross	-	-	-	-	-	-	1	0
Ditto heath per gross	-	-	-	-	-	-	0	6
Butter or lard per cwt.	-	-	-	-	-	-	0	3

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							s.	d.
Carriages four wheels each	-	-	-	-	-	-	5	0
Ditto two wheels each	-	-	-	-	-	-	2	6
Cement or plaster of Paris per ton	-	-	-	-	-	-	0	4
Chaff per ton	-	-	-	-	-	-	0	8
Chimney pots per dozen	-	-	-	-	-	-	0	3
China per ton	-	-	-	-	-	-	1	4
Coals per ton	-	-	-	-	-	-	0	6
Corn—wheat malt and all other kinds per quarter	-	-	-	-	-	-	0	4
Deals per ton	-	-	-	-	-	-	0	3
Drain pipes per ton	-	-	-	-	-	-	0	6
Drapery goods per cwt.	-	-	-	-	-	-	0	2
Earthenware per cwt.	-	-	-	-	-	-	0	2
Ditto common loose per ton	-	-	-	-	-	-	1	0
Fish salted or fresh per cwt.	-	-	-	-	-	-	0	3
Flour per sack of 4 bushels	-	-	-	-	-	-	0	2
Fruit per bushel	-	-	-	-	-	-	0	4
Furniture per ton	-	-	-	-	-	-	4	0
Glass mirrors windows or unenumerated per cwt.	-	-	-	-	-	-	0	1
Glazed bricks per 1,000	-	-	-	-	-	-	1	0
Grocery goods all kinds per ton	-	-	-	-	-	-	1	4
Gunpowder per cwt.	-	-	-	-	-	-	0	8
Hay and straw per ton	-	-	-	-	-	-	0	8
Hides or leather per ton	-	-	-	-	-	-	2	0
Hops per cwt.	-	-	-	-	-	-	0	2
Household goods per ton	-	-	-	-	-	-	4	0
Hurdles wood per dozen	-	-	-	-	-	-	0	2
Ditto iron per ton	-	-	-	-	-	-	1	4
Iron lead copper or other metals per ton	-	-	-	-	-	-	1	4
Iron manufactured not enumerated per ton	-	-	-	-	-	-	1	4
Lemons or oranges per cwt.	-	-	-	-	-	-	0	2
Limes per ton	-	-	-	-	-	-	1	0
Manures artificial per ton	-	-	-	-	-	-	0	6
Ditto street per ton	-	-	-	-	-	-	0	2
Margarine per cwt.	-	-	-	-	-	-	0	1
Marine stores (new) per ton	-	-	-	-	-	-	1	4
Ditto (old) per ton	-	-	-	-	-	-	0	8
Meal bran or pollard per ton	-	-	-	-	-	-	0	4
Meat of all kinds per ton	-	-	-	-	-	-	1	4
Mineral waters per ton	-	-	-	-	-	-	1	0
Molasses per cwt.	-	-	-	-	-	-	0	1
Moss litter per ton	-	-	-	-	-	-	0	8

	s.	d.	A.D. 1918.
Nails per ton - - - - -	1	4	<i>Sandown.</i>
Oil cakes per ton - - - - -	0	8	
Oil petroleum per 40 gallons - - - - -	0	2	
Other kinds per ton - - - - -	0	8	
Paint per cwt. - - - - -	0	1	
Pavers per 1,000 - - - - -	1	0	
Pianofortes harmoniums and organs per ton - - - - -	5	0	
Pipe clay per ton - - - - -	1	0	
Pipes drain per 1,000 - - - - -	0	6	
Potatoes per ton - - - - -	0	6	
Poultry and game per dozen - - - - -	0	4	
Salt per ton - - - - -	0	10	
Ditto agricultural per ton - - - - -	0	6	
Sand chalk shingle or gravel per ton - - - - -	0	2	
Seeds agricultural per ton - - - - -	1	4	
Ditto per cwt. - - - - -	0	1	
Slates per ton - - - - -	0	6	
Soda per ton - - - - -	0	8	
Spars under 16 feet in length - - - - -	0	1	
Ditto over 16 feet in length - - - - -	0	2	
Stones rough and paving per ton - - - - -	0	4	
Stones grinding or millstones per ton - - - - -	0	8	
Ditto grave or marble per ton - - - - -	1	4	
Tar or pitch per cwt. - - - - -	0	1	
Tea per cwt. - - - - -	0	3	
Tiles roofing per 1,000 - - - - -	0	8	
Ditto paving or ornamental per 1,000 - - - - -	1	4	
Timber per 50 cubic feet - - - - -	0	6	
Tobacco per cwt. - - - - -	0	6	
Tobacco pipes per cwt. - - - - -	0	2	
Trees bundles under 112 lbs. - - - - -	0	2	
Ditto above 112 lbs. - - - - -	0	4	
Turf per ton - - - - -	0	4	
Vegetables per ton - - - - -	0	6	
Wines or spirits per 63 gallons - - - - -	0	8	
Ditto bottled per ton - - - - -	2	0	
Wool or yarn per ton - - - - -	1	4	
All other commodities not enumerated above per cwt. - - - - -	0	1	

The Council may demand for goods remaining on the pier or quay for a longer time than 48 hours threepence per ton each day during which the goods shall remain after the first 48 hours.

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RATE FOR SUPPLYING WATER.

Sandown.

s. d.

For every 25 gallons or part of 25 gallons of pure and whole-
some drinking water supplied to any vessel - - - 0 1½

WEIGHING MACHINES.

For goods weighed for each ton or part of a ton - - - 0 2

SCARBOROUGH HARBOUR.

Scarborough. Order to amend the Acts relating to the Scarborough Harbour in regard to the calling of meetings of the Commissioners increase of dues rates and charges and the borrowing of money and for other purposes.

Short and
collective
titles.

1. This Order may be cited as the Scarborough Harbour Order 1918 and the Scarborough Harbour Act 1843 the Scarborough Harbour Act 1876 and Part XII. (Alteration of constitution of Harbour Commissioners) of the Scarborough Corporation Act 1900 and this Order may be jointly cited as the Scarborough Harbour Acts 1843 to 1918.

Commence-
ment of
Order.

2. This Order shall come into force upon the day when the Act confirming this Order is passed and that day is in this Order referred to as "the commencement of this Order."

Interpreta-
tion.

3.—(1) In this Order unless the context otherwise requires—

"The Harbours Clauses Act 1847" means the Harbours Docks and Piers Clauses Act 1847 ;

"The Act of 1843" "the Act of 1876" and "the Act of 1900" mean respectively the Scarborough Harbour Act 1843 the Scarborough Harbour Act 1876 and the Scarborough Corporation Act 1900 ;

"The Commissioners" mean the Scarborough Harbour Commissioners ;

"The harbour" means the harbour works and conveniences connected therewith vested in the Commissioners by virtue of the Act of 1843 and the Act of 1876 and any extension or enlargement thereof and addition thereto ;

"Rates" means tolls dues and rates and other payments of the like nature ;

“The harbour revenue” means and includes the rates and other moneys and receipts which may be taken and received by the Commissioners by way of income under the Act of 1843 the Act of 1876 and this Order; A.D. 1918.
Scarborough.

“The borough” means the borough of Scarborough;

“The Corporation” means the mayor aldermen and burgesses of the borough.

(2) In the application to this Order of the Harbours Clauses Act 1847 the expressions “packet boat or Post Office packet” and “Post Office bag of letters” used in that Act shall mean respectively a vessel employed by or under the Post Office or the Admiralty for the conveyance under contract of postal packets as defined by the Post Office Act 1908 and a mail bag as defined by the same Act:

Provided that nothing in the Harbours Clauses Act 1847 or in this Order shall extend to exempt from rates any such vessel as aforesaid if she also conveys passengers or goods for hire.

4. From and after the commencement of this Order the following provisions of the Act of 1876 are hereby repealed without prejudice to anything duly done or suffered thereunder or any right privilege obligation or liability acquired accrued or incurred thereunder:— Repeal of
certain provi-
sions of Act
of 1876.

Section 34 (Application of borrowed money);

Section 35 (Application of income);

The schedule.

Meetings.

5.—(1) The following words in the Act of 1843 are hereby repealed (namely):— Amendment
of Act of
1843 as to
meetings &c.

(a) In section 24 (How notices of general or special meetings are to be given) the words “resident within twenty-five miles of Scarborough” and the words “and shall be advertised in some one or more of the York Scarborough or Hull newspapers eight days at least before such meeting”;

(b) In section 28 (How notices of committee meetings are to be given) the words “two days at least previous to such committee meeting.”

(2) Notwithstanding the provisions of section 29 (Order of business at meetings of Commissioners and committees) any committee of the Commissioners may appoint one of their number to be chairman for the period of one year or for any less period and the person so appointed if present shall preside at all meetings of the committee and in his absence a member of the committee present at the meeting shall be elected chairman.

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(3) Notwithstanding anything contained in the Act of 1843 the Act of 1876 or the Act of 1900 the two meetings which the Commissioners are thereby required to hold in every year shall be held at such times and at such places as may be determined by the Commissioners or by a committee thereof duly authorised in that behalf.

Rates.

Rates.

6. From and after the commencement of this Order the schedule to this Order shall be substituted for the schedule to the Act of 1876 and the Act of 1843 and the Act of 1876 shall take effect as if the schedule to this Order were Schedule A mentioned in section 15 (Dues on vessels goods &c.) of the Act of 1876.

Power to
vary exemp-
tions and
compound
for rates.

7. The Commissioners may confer vary or extinguish exemptions from and compound with any person with respect to the payment of rates or charges authorised by this Order but so that no preference be in any case given to any person over any other person using the harbour under the like circumstances and that anything done under this section shall not prejudice the other provisions of this Order.

Rates for
warehouses
&c.

8. The Commissioners may (so far as the rates specified in the schedule to this Order do not extend) demand and recover such rates or other consideration as they think reasonable for the use of any warehouses sheds buildings yards wharves jetties docks quays piers slipways or other premises weighing machines mooring posts cranes buoys works and conveniences belonging to or provided by the Commissioners or in respect of any services rendered by them in connexion with the harbour.

Master of
fishing vessel
to report
take of fish.

9.—(1) The master or owner of any vessel (not being a pleasure boat) with a take or cargo of fish shall on the arrival of the vessel within the harbour forthwith furnish to the collector of rates a true and accurate statement of his take or cargo of fish and the name of every person obtaining delivery thereof.

(2) If the master or owner of a vessel fails to comply with this section he shall for each offence be liable to a penalty not exceeding ten pounds.

Harbour-
master may
prevent
sailing of
vessels.

10. The harbour-master may prevent the removal or sailing from within the harbour of any vessel in respect of which or of the goods imported or exported therein any rates are payable until evidence has been produced to him of the payment of those rates to the collector.

Certain
fishing ves-
sels under
stress of

11. Fishing vessels belonging to countries with which for the time being treaties exist exempting from duties and port charges those vessels when forced by stress of weather to seek shelter in

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—
Scarborough.
weather
exempt from
rates.

the ports or on the coast of the United Kingdom shall when forced by stress of weather to make use of the harbour and not breaking bulk while making use thereof be exempt from rates leviable under this Order.

12. All persons going to or returning from any lifeboat or using any apparatus for saving life and being persons either belonging to the crew of the lifeboat or to the coastguard or being persons for the time being actually employed in saving life and all persons brought ashore from any vessel in distress shall at all times have free ingress passage and egress to along and from the premises and works belonging to the Commissioners.

Exemption
of lifeboat
crew.

13.—(1) The rates to be received by the Commissioners shall be adjusted by them in such a manner that as far as possible the harbour revenue shall be sufficient and not more than sufficient for the purposes of the harbour.

Board of
Trade may
reduce rates.

(2) If at any time it appears to the Board of Trade from the annual account to be sent to them under this Order that the clear annual income derived from the rates leviable by the Commissioners on the average of the then three last preceding years after payment of all expenses and outgoings exceeds the amount sufficient for the purposes of the Scarborough Harbour Acts 1843 to 1918 (including the provision of the contingency fund referred to in section 19 of this Order (Contingency fund)) the Board may if in their discretion they think fit reduce the rates leviable under this Order to such amounts as will be sufficient to provide the amount aforesaid and may again at any time raise the rates to any amount not exceeding the rates specified in the schedule to this Order.

Finance.

14.—(1) The Commissioners in addition to any moneys which they are authorised to borrow under the Act of 1876 may with the consent of the Board of Trade from time to time borrow at interest on the security of the harbour revenue or of any part thereof such further money as may be necessary for any of the purposes of their undertaking and may mortgage the harbour revenue or any part thereof to secure the repayment of the money borrowed with interest accordingly.

Power to
borrow.

(2) Any money borrowed under this section shall be repaid within such period (if any) as may be prescribed by the Board of Trade.

15. All money borrowed under the Act of 1876 and this Order shall be applied for the purposes of the Commissioners' undertaking for which capital money may properly be applied or for such other purposes as may be allowed by the Board of Trade.

Application
of money
borrowed.

- A.D. 1918. 16. Any person advancing money to the Commissioners shall not
Scarborough. be bound to require any further or other evidence of the power of
Protection of the Commissioners to borrow the money advanced by such person than
lenders. such as is afforded by a certificate signed by the clerk to the Commissioners and two of the Commissioners that the Commissioners are not exceeding the powers of borrowing conferred on them by the Act of 1876 and this Order.
- Consent of 17. The Commissioners shall not during the continuance of the
Treasury to present war and within twelve months thereafter borrow any money
borrowing of under the provisions of this Order unless the consent of the Treasury
money during war. has been previously obtained.
- Mode of re- 18. The Commissioners shall pay off all moneys borrowed by them
payment by on mortgage under the powers of this Order either by equal yearly or
Commis- half-yearly instalments of principal or of principal and interest com-
sioners of bined or by means of a sinking fund or partly by such instalments
borrowed and partly by a sinking fund.
money.
- Contingency 19. The Commissioners may if they think fit for the purpose of
fund. forming and maintaining a contingency fund not exceeding at any time the sum of twenty thousand pounds to meet any extraordinary claim or demand or any unforeseen accident or extraordinary damage which may happen or be caused to the harbour appropriate and set apart subject to the provisions of this Order as to application of harbour revenue any amount which they think fit in any year out of the harbour revenue and shall deposit any such amount in some joint stock bank to be increased by accumulation in the way of compound interest or otherwise or shall invest the same in securities upon which trust moneys may be invested (other than securities of the Commissioners) until required for any of the aforesaid purposes.
- Application 20. The harbour revenue shall be applicable for the purposes and
of harbour revenue. in the order following and not otherwise:—
(1) In payment of the costs of and connected with the preparation and obtaining of this Order:
(2) In payment of the expense properly chargeable to revenue of the maintenance repair and management of the harbour:
(3) In payment year by year of the interest accruing on money borrowed under the Act of 1876 and under this Order:
(4) In payment of the instalments as they become due in discharge of any money so borrowed and repayable by instalments and in forming sinking funds in accordance with the Act of 1876 and this Order for payment of principal moneys so borrowed:
(5) In making such payments (if any) as the Commissioners think fit into a contingency fund established under the provisions of this Order.

The surplus (if any) after providing for the purposes aforesaid shall be applied by the Commissioners in the general improvement of the harbour.

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21. The following provisions of the Act of 1876 shall with any necessary modifications extend and apply to the exercise of the borrowing powers conferred upon the Commissioners by this Order as if the same were re-enacted in this Order (namely):—

Application
of Act of
1876.

Section 10 (Incorporation with Act of parts of Commissioners
Clauses Act);

Section 25 (Annual return to Board of Trade with respect to
sinking fund);

Section 26 (Power to re-borrow);

Section 27 (Coupons for interest on mortgages);

Section 28 (Receiver for mortgagees);

Section 29 (Commissioners not to issue debenture stock);

Section 30 (Power to raise money by annuities);

Section 31 (Register transfer &c. of annuities);

Section 32 (Power to Commissioners to arrange with mort-
gagees and annuitants); and

Section 33 (Price of annuities and redemption).

22.—(1) The Board of Trade shall if they think fit appoint a person to be permanent auditor to examine and audit the accounts of the Commissioners and shall fix the payments to be made to him for salary and for expenses (if any) and the amount of the salary and expenses (if any) shall be paid by the Commissioners out of the rates or other income received by them under this Order.

Auditor.

(2) The Board of Trade may at any time revoke the appointment of any person as auditor and thereupon unless they see special reason to the contrary shall appoint another person as auditor.

(3) The Commissioners shall on demand by the auditor produce to him all books accounts deeds papers writings and other documents and give him all information in their possession or power and afford him all reasonable facilities for conducting the examination and audit.

(4) If the Commissioners refuse or neglect to comply with any of the provisions of this section they shall be liable to a penalty not exceeding twenty pounds for every month during which they refuse or neglect so to comply.

23.—(1) The Commissioners shall within one month after sending to the clerk of the peace the copy of their annual account in abstract send a copy of the same to the Board of Trade and the sixteenth section of the General Pier and Harbour Act 1861 Amendment Act shall apply to and include any such account.

Annual
account to
be sent to
Board of
Trade.

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Scarborough.

(2) The Commissioners shall as from the expiration of that month be liable to a penalty not exceeding twenty pounds for every week or part of a week during which they refuse or neglect to comply with this section.

(3) The account shall be made up to the end of the thirty-first day of March in each year.

Scarborough
Corporation
may advance
money to
Commis-
sioners.

24.—(1) The Corporation may subject to the sanction of the Local Government Board advance by way of loan to the Commissioners such sums of money as the Commissioners are for the time being authorised to borrow and are desirous of borrowing from the Corporation and every loan so advanced shall be for a period not exceeding the period for which the Commissioners are authorised to borrow or re-borrow the same.

(2) The Corporation in addition to any other money they are authorised to borrow under any other Act or Order may for the purposes of this section borrow such money as may be necessary for the purposes of this section and the borough rate of the borough is hereby made specially liable to provide for the yearly sums required to be provided in respect of the principal moneys borrowed under the provisions of this section.

Byelaws.

Byelaws.

25.—(1) The byelaws which may from time to time be made by the Commissioners in exercise of the power in that behalf conferred on them by section 83 of the Harbours Clauses Act 1847 and section 174 of the Act of 1843 may provide for imposing a penalty not exceeding forty shillings for the breach or non-observance of any of the byelaws.

(2) Notwithstanding anything in the Act of 1843 and without prejudice to the validity of any byelaws of the Commissioners in force at the commencement of this Order no byelaw shall come into force until it has received the allowance and confirmation of the Board of Trade and that allowance and confirmation shall be sufficient for all purposes.

(3) Section 175 of the Act of 1843 is hereby repealed.

Life-Saving Apparatus.

Life-saving
apparatus
may be
attached to
harbour.

26. The officers of the coastguard and all other persons for the time being actually employed in connexion with the lifeboat or the apparatus for saving life may either permanently or temporarily without payment attach or cause to be attached to any part of the harbour spars and other apparatus for saving life and may also either in course of using or of exercising the apparatus for saving life fire rockets over the harbour.

27. The Commissioners shall at all times keep at convenient places in the harbour and in obedience to any requirements which may be made by the Board of Trade lifebuoys and lifelines in good order and fit and ready for use.

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Scarborough.
Lifebuoys to
be kept.

Harbour Lights.

28. In case of injury to or destruction or decay of the harbour or any part thereof the Commissioners shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Corporation of Trinity House Deptford Strond and shall apply to that Corporation for directions as to the means to be taken and the Commissioners shall be liable to a penalty not exceeding ten pounds for every month during which they omit so to apply or refuse or neglect to obey any direction given in reference to the means to be taken.

Provision
against
danger to
navigation.

Miscellaneous.

29.—(1) Sections 14 15 24 28 56 99 and 100 of the Harbours Clauses Act 1847 shall be incorporated with this Order.

Application
of Harbours
Clauses Act
1847.

(2) Sections 16 to 19 and sections 84 and 85 of the said Act shall not be incorporated with this Order nor except as aforesaid shall any of the other sections of the said Act be so incorporated in so far as they are inconsistent with the provisions of the Act of 1843 the Act of 1876 or this Order.

30. The Commissioners shall have the appointment of meters and weighers within the limits of the harbour as defined by the Act of 1843.

Meters and
weighers.

31. Nothing in this Order affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Commissioners to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or of the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

Crown
rights.

32. Notwithstanding the provisions contained in the section of this Order of which the marginal note is "Crown rights" or in any public statute His Majesty and His lessees for their respective interests

Crown
minerals.

A.D. 1918. may work any minerals belonging to the Crown under or adjacent
Scarborough. to the lands and works of the Commissioners authorised to be taken
 or constructed by this Order but in the event of any such right
 being at any time intended to be exercised the provisions of the
 Railways Clauses Consolidation Act 1845 with respect to mines lying
 under or near the railway shall apply when the workings reach a
 point the distance of which from the nearest of such lands would not
 if measured horizontally exceed one-half the depth of such workings
 below the surface level of such lands and in the application of those
 provisions the term "Company" shall mean the Commissioners and
 the term "railway" shall mean the said lands and works.

Saving exist- 33. Except as in this Order expressed nothing in this Order shall
 ing powers. take away abridge or prejudicially affect any estate interest right power
 or authority of the Commissioners under the Act of 1843 the Act of
 1876 or otherwise.

Officers 34. Officers of the Board of Trade and police officers acting in
 exempt from the execution of their duty shall at all times have free ingress passage
 rates. and egress to along and from the harbour without payment.

Costs of 35. All costs charges and expenses of and incident to the preparation
 Order. and obtaining of this Order and otherwise incurred in relation thereto
 shall be paid by the Commissioners.

The SCHEDULE.

PART I.

TONNAGE DUES ON SHIPS ON ENTERING OR LEAVING THE HARBOUR.

	<i>s.</i>	<i>d.</i>
For every ship or vessel British or foreign voyaging from or to the harbour and any other place in the United Kingdom with cargo for every ton register - - - -	0	4
For every ship or vessel voyaging from or to the harbour and any other place out of the United Kingdom with cargo for every ton register - - - -	0	8
For every ship or vessel coming into the harbour with cargo and loading outward a different cargo for any port in the United Kingdom for every ton register - - - -	0	6
For every ship or vessel coming into the harbour with cargo and loading outward a different cargo for any port out of the United Kingdom for every ton register - - - -	0	10

	s.	d.	A.D. 1918.
For every ship or vessel in ballast coming into the harbour to load cargo for every ton register - - - - -	0	1	Scarborough.
For every ship or vessel coming into the harbour for shelter whether laden or unladen but if laden not breaking bulk for every ton register (without further charge on account of tonnage dues) - - - - -	0	1	
For every ship or vessel coming into the harbour for bunker coal for every ton register (without further charge on account of tonnage dues) - - - - -	0	1	
Any ships remaining in the harbour longer than four weeks to pay a further sum of twopence per registered ton per fortnight after the first four weeks.			
For every vessel or hulk used as a store or warehouse per annum per ton register - - - - -	2	0	
Tugs each entry under 20 tons register - - - - -	3	0	
Do. do. over 20 tons register per ton register - - - - -	0	2	
Tugs when towing into or out of the harbour under 20 tons register per ton register - - - - -	0	2	
Tugs when towing into or out of the harbour over 20 tons register per ton register - - - - -	0	4	

Light Dues.

For every ship or vessel coming into the harbour (in addition to any other charge) - - - - -	1	6
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This charge shall not apply to fishing vessels.

FISHING VESSELS.

Steam trawlers and trawlers with motors each entry under 50 tons register - - - - -	4	0
Steam trawlers and trawlers with motors each entry over 50 tons register per ton register - - - - -	0	1
Steam drifters and vessels with motors each entry under 40 tons register - - - - -	3	0
Steam drifters and vessels with motors each entry over 40 tons register per ton register - - - - -	0	1
Sailing vessels each entry under 30 tons register - - - - -	2	0
Sailing vessels each entry over 30 tons register per ton register - - - - -	0	1
Herring cobs per annum - - - - -	20	0
Pleasure cobs licensed to ply for hire per annum - - - - -	6	0
Other cobs or fishing cobs per annum - - - - -	6	0
Cobs stored on the quay 5s. and 3s. each according to size from 1st November to the 31st May with free use of wheels.		
Any vessel remaining in the harbour longer than four weeks to pay the same rate as cargo vessels.		

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Bridge Dues.

Scarborough.

	s.	d.
Vessels passing through the bridge to be charged once each time of entry - - - - -	2	0

PLEASURE STEAMERS AND MOTOR BOATS.

Every vessel under 50 tons register each entry	-	9	0
Do. above 50 tons register each entry	-	11	6
Motor boats from the piers carrying not more than 12 passengers each on the licensed number each trip	-	0	0½
Daily tripping steamers landing passengers each passenger	-	0	0¼
Steamers landing or embarking passengers from any port in the United Kingdom each passenger	-	0	3
Steamers landing or embarking passengers from any port out of the United Kingdom each passenger	-	0	6

PART II.

RATES FOR USE OF CRANES WEIGHING MACHINES AND SHEDS.

Craneage Rates.

All goods or packages not exceeding one ton	-	0	4
All goods or packages exceeding one ton and not exceeding two tons	-	0	6
All goods or packages exceeding two tons and not exceeding three tons	-	0	8
All goods or packages exceeding three tons and not exceeding four tons	-	0	10
All goods or packages exceeding four tons and not exceeding five tons	-	1	0
All goods or packages exceeding five tons and not exceeding six tons	-	1	2
All goods or packages exceeding six tons and not exceeding seven tons	-	1	4
All goods or packages exceeding seven tons and not exceeding eight tons	-	1	6
All goods or packages exceeding eight tons and not exceeding nine tons	-	1	10
All goods or packages exceeding nine tons and not exceeding ten tons	-	2	4
All goods or packages exceeding ten tons	-	3	6

Weighing Machines.

For goods weighed for each ton or part of ton	-	0	2
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Shed and Pier Dues.

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s. d.

Scarborough.

For every ton of goods of 50 cubic feet or for each ton of cargo landed or placed on the pier for shipment which shall remain in the sheds or other works of the pier for a longer time than 24 hours the sum of	-	-	-	-	0	3
And for each day of 24 hours during which such goods shall remain after the first 24 hours the sum of	-	-	-	-	0	3
For each portmanteau trunk box parcel or other article of passengers' luggage for each day or part of a day	-	-	-	-	0	2
For admission to Fish Market	-	-	-	each person	0	1
For each empty fish barrel or box landed	-	-	-	-	0	0½
For each empty fish barrel or box left on the East Pier per day of 24 hours	-	-	-	-	0	0½
For each full fish barrel or box left on the East Pier per day of 24 hours	-	-	-	-	0	1
For each full fish barrel or box of cured fish exported	-	-	-	-	0	2
For each full or empty fish barrel or box left on any other pier for every 12 hours	-	-	-	-	0	1

PART III.

RATES ON PASSENGERS' LUGGAGE LANDED OR ON EMBARKATION.

For every trunk portmanteau box parcel or other package within the description of luggage—

Not exceeding 28 pounds	-	-	-	-	0	2
Over 28 and not exceeding 84 pounds	-	-	-	-	0	4
Over 84 and not exceeding 112 pounds	-	-	-	-	0	5
Over 112 and not exceeding 140 pounds	-	-	-	-	0	6
Over 140 and not exceeding 196 pounds	-	-	-	-	0	7
Over 196 and not exceeding two hundredweight	-	-	-	-	0	8
For every hundredweight beyond	-	-	-	-	0	4
And for every additional 20 pounds	-	-	-	-	0	1

PART IV.

RATES ON GOODS SHIPPED OR UNSHIPPED OR TRANSHIPPED WITHIN
THE HARBOUR.

Agricultural implements	-	-	-	-	per cwt.	0	2
Ale beer and porter	-	-	-	-	per hogshead of 63 gallons	0	3
Ale beer and porter	-	-	-	-	per dozen bottles	0	1
Ale beer and porter bottled	-	-	-	-	per 2½ cwt.	0	2
Ammunition	-	-	-	-	per ton	1	0
Anchors	-	-	-	-	per cwt.	0	3
Arms (cannon or mortar)	-	-	-	-	per ton	1	0

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			s.	d.
Arms muskets swords and small arms	-	-	per ton	3 0
Asphalte	-	-	- "	0 6
Ballast (lying on pier) per week	-	-	- "	0 1
Bark	-	-	- "	0 6
Baskets	-	-	per dozen	0 6
Beef or pork	-	-	per ton	1 0
Biscuit or bread	-	-	per cwt.	0 1
Boats	-	-	- each	2 6
Bones whole or crushed or dust	-	-	per ton	1 0
Bottles	-	-	per gross	0 2
Bran	-	-	per ton	0 6
Bricks (common)	-	-	per 1,000	1 0
Bricks (stock pressed fire or bath)	-	-	per 1,000	1 6
Brushes	-	-	per 2½ cwt.	0 1
Butter and lard	-	-	per cwt.	0 2
Cables iron or hempen	-	-	per ton	0 6
Cake (linseed cotton rape or other similar kind)	-	-	per cwt.	0 1
Carriages chaises and other four-wheeled	-	-	- each	2 6
Carriages gigs carts and other two-wheeled	-	-	- "	1 3
Carriages handcarts wheelbarrows	-	-	- "	1 0
Carriages perambulators	-	-	- "	0 6
Casks or boxes (empty) other than fish barrels or boxes not being returned packages	-	-	- each	0 1
Cattle (bulls cows oxen calves horses)	-	-	- "	0 4
Cattle (pigs sheep lambs)	-	-	- "	0 2
Cement	-	-	per ton	1 0
Chalk	-	-	- "	0 6
Cheese	-	-	per cwt.	0 1
Chimney pots	-	-	- each	0 1
Clay common	-	-	per ton	0 3
Clay fire manufactured	-	-	- "	1 0
Clay pipe	-	-	- "	1 0
Coals coke or culm by vessel	-	-	- "	0 7½
Coals coke or culm from inland or by railway	-	-	- "	0 7½
Coal tar	-	-	- "	0 6
Coil rope	-	-	per cwt.	0 1
Copper and brass	-	-	per ton	0 4
Cordage	-	-	per cwt.	0 1
Cork and corks	-	-	- "	0 1
Cutch	-	-	- "	0 1
Derelict goods wrecks &c.	-	-	- per ton	1 0
Dogs	-	-	- each	0 6

									s.	d.	A.D. 1918.
Earthenware in crates	-	-	-	-	-	-	-	per ton	1	0	Scarborough.
Eggs per box of 1,600	-	-	-	-	-	-	-	-	0	6	
Felt	-	-	-	-	-	-	-	per cwt.	0	0½	
Fish (not sold by auction):—											
Crabs lobsters and oysters	-	-	-	-	-	-	-	per cwt.	0	4	
Turbot brill halibut soles cod and ling	-	-	-	-	-	-	-	„	0	2	
Other fish not enumerated	-	-	-	-	-	-	-	„	0	1½	
Fish of all kinds (sold by auction) including oysters crabs and lobsters 30s. per centum upon the gross amount realised by the sale any fraction of a shilling to be reckoned as a shilling.											
Flax	-	-	-	-	-	-	-	per cwt.	0	0½	
Flocks	-	-	-	-	-	-	-	„	0	0½	
Flour and meal	-	-	-	-	-	-	-	„	0	0½	
Fruit (apples and pears)	-	-	-	-	-	-	-	„	0	1	
Fruit (not enumerated)	-	-	-	-	-	-	-	„	0	0½	
Fuel (patent or manufactured)	-	-	-	-	-	-	-	per ton	0	6	
Furniture household	-	-	-	-	-	-	-	„	2	6	
Glass	-	-	-	-	-	-	-	per cwt.	0	2	
Grain (wheat barley oats rye peas beans maize and buck wheat)	-	-	-	-	-	-	-	per quarter	0	2	
Groceries (not enumerated)	-	-	-	-	-	-	-	per cwt.	0	3	
Guano	-	-	-	-	-	-	-	per ton	0	6	
Gunpowder	-	-	-	-	-	-	-	per cwt.	0	6	
Hair for mortar &c.	-	-	-	-	-	-	-	„	0	2	
Hair curled	-	-	-	-	-	-	-	„	0	3	
Hams bacon tongue	-	-	-	-	-	-	-	„	0	0½	
Hardware	-	-	-	-	-	-	-	per ton	0	6	
Hay	-	-	-	-	-	-	-	„	0	6	
Hemp	-	-	-	-	-	-	-	per cwt.	0	0½	
Herrings fresh or salt	-	-	-	-	-	-	-	per 1,000	0	3	
Hides ox cow or horse	-	-	-	-	-	-	-	per cwt.	0	0½	
Hoops (wood or iron)	-	-	-	-	-	-	-	per ton	1	6	
Hops (wet or dry)	-	-	-	-	-	-	-	per cwt.	0	3	
Horns (animals) and horn tips	-	-	-	-	-	-	-	per ton	1	0	
Ice	-	-	-	-	-	-	-	„	1	0	
Iron—bar bolt rod and sheet	-	-	-	-	-	-	-	„	1	0	
„ pig or old	-	-	-	-	-	-	-	„	0	6	
„ manufactured	-	-	-	-	-	-	-	„	1	0	
„ pots	-	-	-	-	-	-	-	- each	0	1	
Ironmongers' goods	-	-	-	-	-	-	-	per cwt.	0	1	
Launches—motor or steam	-	-	-	-	-	-	-	- each	5	0	
Lead—for painting purposes	-	-	-	-	-	-	-	per ton	0	6	

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							s.	d.
Lead—sheet or manufactured	-	-	-	-	-	per ton	0	6
„ pig	-	-	-	-	-	„	0	6
Leather—tanned or dressed	-	-	-	-	-	per cwt.	0	2
Lime	-	-	-	-	-	per ton	0	6
Machinery	-	-	-	-	-	„	1	0
Malt	-	-	-	-	-	per quarter	0	3
Manure—not enumerated	-	-	-	-	-	per ton	0	6
Marble—wrought or otherwise	-	-	-	-	-	„	1	0
Metals—not enumerated	-	-	-	-	-	„	0	6
Molasses	-	-	-	-	-	„	1	0
Motor cars (see Vehicles).								
Motor cycles	-	-	-	-	-	- each	2	6
Musical instruments	-	-	-	-	-	per cubic foot	0	1
Nuts	-	-	-	-	-	per bushel	0	1
Oakum	-	-	-	-	-	per cwt.	0	1
Oils	-	-	-	-	-	per ton	1	0
Oil paraffin	-	-	-	-	-	„	1	0
Oil used for internal combustion engines	-	-	-	-	-	per two gals.	0	0 $\frac{1}{4}$
Oranges or lemons	-	-	-	-	-	per cwt.	0	3
Ores	-	-	-	-	-	per ton	0	6
Paint mixed or unmixed	-	-	-	-	-	per cwt.	0	4
Paris plaster	-	-	-	-	-	per ton	0	6
Phosphates	-	-	-	-	-	„	1	0
Pipes sanitary	-	-	-	-	-	„	0	6
Pipes tobacco	-	-	-	-	-	per cwt.	0	2
Pitch and tar	-	-	-	-	-	per barrel of 196 lbs.	0	3
Potatoes	-	-	-	-	-	per cwt.	0	1
Rags	-	-	-	-	-	„	1	0
Rope (old)	-	-	-	-	-	per ton	1	0
Sails	-	-	-	-	-	per cwt.	0	2
Salt	-	-	-	-	-	per ton	1	0
Sand or loam	-	-	-	-	-	„	0	3
Seed of all kinds	-	-	-	-	-	per quarter	0	2
Skins (animal)	-	-	-	-	-	per doz.	0	6
Slates	-	-	-	-	-	per ton	1	0
Soda (nitrate of)	-	-	-	-	-	„	1	0
Spirits	-	-	-	-	-	per hogshead of 56 gallons	0	6
Spirits bottled	-	-	-	-	-	per doz.	0	1
Steel	-	-	-	-	-	per ton	0	6
Stones	-	-	-	-	-	„	0	6
Sugar	-	-	-	-	-	per cwt.	0	0 $\frac{1}{2}$
Tallow soap and candles	-	-	-	-	-	„	0	0 $\frac{1}{2}$
Tea	-	-	-	-	-	per chest of 22 lbs.	0	2

			s.	d.	A.D. 1918.
Tiles drainage	-	-	-	-	per 1,000 0 6
Tiles for roofing	-	-	-	-	per 1,000 1 0
Tin and zinc	-	-	-	-	per ton 0 6
Tobacco	-	-	-	-	per cwt. 0 3
Turpentine and varnish	-	-	-	-	per 54 gallons 0 8
Vegetables—not enumerated	-	-	-	-	per cwt. 0 2
Vehicles propelled by machinery	-	-	-	-	each 5 0
Vinegar	-	-	-	-	per 18 gallons 0 3
Vitriol	-	-	-	-	per 10 gallons 0 1
Waters still or aerated	-	-	-	-	per dozen 0 1
Whiting	-	-	-	-	per ton 0 6
Wine	-	-	-	-	per hogshead of 56 gallons 0 6
Wine bottled	-	-	-	-	per dozen 0 1
Wire rope	-	-	-	-	per cwt. 0 0½
Wood deals battens and boards	per load of 50 cubic feet	-	0	6	
Wood laths and lathwood	of 216 cubic feet	-	1	0	
Wood oars	-	-	0	6	per dozen
Wood per fathom	of 216 cubic feet	-	1	0	
Wood pit props	-	-	0	9	per 50 cubic feet
Wood scoops	per fathom of 216 cubic feet	-	0	1	
Wood spars above 22 feet in length not exceeding 6 inches in diameter	-	-	3	0	per 120
Wood spars under 22 feet in length under 4 inches diameter	-	-	2	0	per 120
Wood staves	per load of 50 cubic feet	-	0	6	
Wood timber square or round	per load of 50 cubic feet	-	0	6	
Wood trenails	-	-	0	6	per 1,000
Wood wedges	-	-	0	6	per 1,000
Wood of all kinds not enumerated	per load of 50 cubic feet	-	0	6	

All other goods produce articles or things not particularly enumerated above:—

Heavy goods	per ton weight	-	0	6
Light goods	per ton measurement	-	0	9

In charging the rates on goods the gross weight or measurement to be taken and for any less weights measures and quantities than those above specified a portion of the respective rates shall be charged.

WATER MONEY.

	s.	d.
For each 25 gallons or part of 25 gallons of pure and wholesome drinking water supplied to any vessel	0	1½

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NEW SHOREHAM HARBOUR.

*New
Shoreham.*

Order for conferring powers on the Shoreham Harbour Trustees to borrow money for the purposes of the maintenance improvement and management of the harbour and on local authorities to lend money to the Trustees and for other purposes.

Preliminary.

Short titles.

1. This Order may be cited as the New Shoreham Harbour Order 1918 and the New Shoreham Harbour Acts and this Order may be cited together as the New Shoreham Harbour Acts and Order 1816 to 1918.

Commence-
ment.

2. This Order shall come into operation upon the day when the Act confirming this Order is passed and that day is in this Order referred to as "the commencement of this Order."

Interpreta-
tion.

3.—(1) In this Order unless the context otherwise requires—

"The Harbours Clauses Act 1847" means the Harbours Docks and Piers Clauses Act 1847;

"The Act of 1816" means the Act of 56 Geo. III. cap. lxxxii.;

"The Act of 1876" means the New Shoreham Harbour Act 1876

"the Act of 1887" means the New Shoreham Harbour Act 1887 and "the Acts 1816 to 1887" mean the Acts of 1816 1876 and 1887;

"The Trustees" mean the Shoreham Harbour Trustees incorporated by the New Shoreham Harbour Act 1873;

"The harbour" means the New Shoreham Harbour the limits whereof are defined in section 4 of the Act of 1876;

"The harbour undertaking" means the harbour and conveniences connected therewith including the lands property works vessels dredgers chattels and other things used for the purpose of the undertaking and the right to levy rates and tolls and other rights conferred on or vested in the Trustees by the New Shoreham Harbour Acts and Order 1816 to 1918 and the undertaking of the Trustees in connexion with the harbour;

"The harbour revenue" means the rates tolls dues rents and other moneys and receipts which may be taken and received by way of income from or in respect of the harbour undertaking;

“The ‘A’ stock and the ‘B’ stock” mean respectively the New Shoreham Harbour Redeemable “A” Stock and the New Shoreham Harbour Redeemable “B” Stock authorised by the Act of 1887;

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“The institution” means the United Kingdom Temperance and General Provident Institution;

“The lock loan” means the moneys lent by the institution to the Trustees and the balance due in respect thereof secured by deeds dated respectively the fifteenth day of July one thousand nine hundred and seven and the eleventh day of January one thousand nine hundred and nine and made between the Trustees of the one part and the trustees of the institution of the other part including the costs due in connexion therewith such balance (including interest calculated up to the thirtieth day of June one thousand nine hundred and eighteen) and costs amounting in the whole to the sum of five thousand nine hundred and seven pounds;

“The Brighton Corporation” “the Hove Corporation” and “the Worthing Corporation” mean respectively the mayor aldermen and burgesses of the respective boroughs of Brighton Hove and Worthing “the Portslade-by-Sea Council” “the Southwick Council” and “the Shoreham-by-Sea Council” mean respectively the urban district councils of the respective districts of Portslade-by-Sea Southwick and Shoreham-by-Sea and “the Local Authorities” mean collectively the foregoing corporations and councils and any one or more of them.

(2) In the application to this Order of the Harbours Clauses Act 1847 the expressions “packet boat or Post Office packet” and “Post Office bag of letters” used in that Act shall mean respectively a vessel employed by or under the Post Office or the Admiralty for the conveyance under contract of postal packets as defined by the Post Office Act 1908 and a mail bag as defined by the same Act Provided that nothing in the Harbours Clauses Act 1847 or in this Order shall extend to exempt from rates or duties any such vessel as aforesaid if she also conveys passengers or goods for hire.

Undertakers.

4. The Trustees shall be the undertakers for carrying this Order into execution. Undertakers.

Incorporation of Acts.

5. The Commissioners Clauses Act 1847 is hereby incorporated with this Order except so much thereof as relates to the election and rotation

Incorporation of
Commissioners
Clauses Act 1847.

A.D. 1918. of the commissioners and except section 92 as to the appointment of
New auditors and except as expressly varied by this Order and with the
Shoreham. substitution of Trustees for commissioners.

Finance.

Power to
borrow.

6.—(1) The Trustees may independently of any moneys which they have already borrowed under the provisions of any Act borrow at interest for the following purposes any sums not exceeding the following sums (that is to say):—

(a) (1) For the purposes of paying the costs charges and expenses of this Order as hereinafter provided and (2) for the purposes of defraying or repaying to the Trustees moneys laid out by them in defraying the expenses of the maintenance improvement and management of the harbour and the harbour undertaking incurred subsequent to the twenty-ninth day of September one thousand nine hundred and seventeen and which may hereafter be incurred the sum of five thousand pounds;

(b) With the approval of the holders of a majority in value of the "A" stock and the consent of the Board of Trade such further money as may be required from time to time for the purpose (2) mentioned in the preceding subsection and for any other purposes of this Order.

(2) In order to secure the repayment of moneys borrowed for the purposes mentioned in this section and the payment of interest thereon the Trustees may mortgage or charge the harbour undertaking and the harbour revenue and any property or assets for the time being belonging to the Trustees and any such mortgage or charge shall rank as a charge on the harbour undertaking harbour revenue and other property and assets for the time being belonging to the Trustees in accordance with the provisions as regards priority hereinafter in this Order contained Provided that no higher rate of interest than four per centum per annum shall be paid by the Trustees without the consent of the Board of Trade in respect of any moneys borrowed by the Trustees under the provisions of this Order and secured as aforesaid.

Trustees not
to borrow
during
continuance
of the war.

7. The Trustees shall not during the continuance of the present war and within twelve months thereafter raise or borrow any money (other than money required for paying the costs charges and expenses of this Order) unless the consent of the Treasury has been previously obtained.

Application of
provisions of
Act of 1887.

8. The following provisions of the Act of 1887 with regard to the debenture stock created thereunder and the holders thereof shall so

far as applicable and as not inconsistent with the other provisions of this Order extend and apply to the moneys borrowed under this Order and the lenders thereof as if the same were re-enacted in this Order and expressly made applicable to such moneys and lenders respectively (viz.) :—

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- Section 5 No priorities among holders of the same class ;
- Section 6 Incidents of stock ;
- Section 7 Certificates of stock ;
- Section 8 Register of stocks ;
- Section 9 Mode of transfer of stock ;
- Section 10 Closing register for transfers ;
- Section 11 Transmission of stock ;
- Section 12 Receipts of stockholder.

9. Notwithstanding anything contained in the Acts 1816 to 1887 the lock loan shall be and the same is hereby confirmed and the same shall be a charge upon the harbour revenue and the harbour undertaking and other property and assets for the time being belonging to the Trustees in accordance with the provisions as regards priority hereinafter in this Order contained.

Confirmation
of lock loan.

10. Notwithstanding anything contained in the Acts 1816 to 1887 the repayment of the moneys due in respect of the "A" stock and the "B" stock and the payment of interest thereon shall be charged upon the harbour revenue and the harbour undertaking and other property and assets for the time being belonging to the Trustees in accordance with the provisions as regards priority hereinafter in this Order contained.

Charge of
"A" and
"B" stocks
on under-
taking.

11. The moneys authorised to be borrowed under this Order the lock loan the "A" stock and the "B" stock and the interest thereon and the securities therefor respectively shall as regards priority rank in the order following (namely) :—

Ranking of
loans under
this Order
and existing
loans and
stocks.

- (a) The interest on the moneys borrowed under the provisions of this Order ;
- (b) The interest on the balance of the lock loan ;
- (c) The interest on the "A" stock ;
- (d) The principal of the moneys borrowed under the provisions of this Order ;
- (e) The principal of the balance of the lock loan ;
- (f) The interest on the "B" stock ;
- (g) The principal of the "A" stock ;
- (h) The principal of the "B" stock.

12.—(1) Section 15 of the Act of 1887 is hereby repealed but so that notwithstanding such repeal the harbour revenue in respect of

Application
of harbour
revenue.

A.D. 1918. the period prior to the commencement of this Order shall be applied in accordance with the provisions of that section.

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(2) From and after the commencement of this Order the harbour revenue of each year shall be applied so far as the same is sufficient wholly for the purposes and in the manner and order following and not otherwise (namely) :—

- (i) In payment of the costs of and connected with the preparation and obtaining of this Order and otherwise incurred in reference thereto except in so far as they may be provided for out of moneys borrowed by the Trustees for the purpose under the provisions of this Order ;
- (ii) In payment of the costs charges and expenses of and incident to the maintenance and management of the harbour and the harbour undertaking incurred subsequent to the commencement of this Order ;
- (iii) In payment of the interest accruing on the moneys borrowed under the provisions of this Order and arrears of such interest ;
- (iv) In payment of the interest accruing on the balance of the lock loan and arrears of such interest ;
- (v) In payment of the interest accruing on the " A " stock and arrears of such interest ;
- (vi) In payment of the principal of the moneys borrowed under the provisions of this Order ;
- (vii) In payment of the principal of the balance of the lock loan ;
- (viii) In payment of the interest accruing on the " B " stock ;
- (ix) In payment of the balance thereof until all the " A " stock shall have been redeemed to a sinking fund to be called the reserve fund A and to which the provisions of section 16 (Application of reserve fund A) of the Act of 1887 shall extend and apply ;
- (x) In payment of the balance thereof when all the " A " stock shall have been redeemed to a sinking fund to be called the reserve fund B and to which the provisions of section 17 (Application of reserve fund B) of the Act of 1887 shall extend and apply.

Application
of moneys
borrowed.

13. All moneys borrowed under the provisions of this Order shall be applied only to the purposes for which moneys are by this Order authorised to be borrowed.

14.—(1) The holders of mortgages created under the powers of this Order and holders of the lock loan and of the "A" stock and the "B" stock shall have power respectively to enforce payment of arrears of interest by the appointment of a receiver of the harbour undertaking and the harbour revenue and other property and assets for the time being belonging to the Trustees.

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Shoreham.*
Appointment
of receiver.

(2) Nothing in this Order or the Acts 1816 to 1887 shall be deemed to authorise any mortgagees or holders of the lock loan or of the "A" stock or the "B" stock to enforce payment of any arrears of interest due to them by seizure and sale of any portion of the harbour undertaking or of the property and assets for the time being belonging to the Trustees without the consent of the Board of Trade.

15. A person lending money to the Trustees under this Order shall not be bound to inquire as to the observance by the Trustees of any provisions of this Order nor be bound to see to the application nor be answerable for any loss misapplication or non-application of the money lent or of any part thereof.

Protection of
lender from
inquiry.

16. The Trustees shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Trustees shall be a sufficient discharge to the Trustees in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Trustees have had express or implied notice of any such trust or of any charge or encumbrance upon or transfer of such loan or security or any part thereof or any interest thereon not entered in their register.

Trustees not
to regard
trusts.

17.—(1) The Local Authorities may (subject to the provisions of this Order):—

Power to
Local Autho-
rities to lend
and guaran-
tee.

(a) Advance to the Trustees by way of loan for the purposes for which the Trustees are authorised to borrow under this Order the sums which the Trustees are by this Order authorised to borrow;

(b) Give and enter into at such time or times in such manner and subject to such stipulations as may be agreed any guarantee or contract for securing the repayment to the lenders of the amount which may be advanced to the Trustees under this Order together with interest thereon.

(2) In order to raise the sum required for the purpose of any such advance as aforesaid the Local Authorities may independently

A.D. 1918. of any money they have already borrowed or which they may be authorised to borrow under the provisions of any other Act or Order
 New borrow money on the security of their respective borough funds or
 Shoreham. borough rates district funds or general district rates or any of them as the case may be and may mortgage charge or assign the same or any of them.

Section 234
of Public
Health Act
1875 not to
apply.

18. The powers of borrowing money by this Order given to the Local Authorities shall not be restricted by any of the regulations contained in section 234 (Regulations as to exercise of borrowing powers) of the Public Health Act 1875 and in calculating the amount which the Local Authorities may borrow under that Act or any other enactments any sums which they may borrow under this Order shall not be reckoned.

Mode of
raising
money.

19. The Local Authorities may raise all or any moneys which they are authorised to borrow under this Order by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others Provided that the provisions of this Order relating to sinking funds shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 (Discharge of loan by sinking fund) of that Act.

Certain
provisions of
Public Health
Act 1875 to
apply to
mortgages of
Local Author-
ities.

20. The provisions of sections 236 to 239 of the Public Health Act 1875 shall be applicable to any mortgage granted by the Local Authorities under the provisions of this Order.

Period for
repayment
of moneys
borrowed
by Local
Authorities.

21. All moneys borrowed by the Local Authorities for the purpose of being advanced to the Trustees and actually advanced to them under the provisions of this section shall be repaid by the Local Authorities within fifteen years (in this Order referred to as "the prescribed period") from the date of borrowing the same.

Mode of
payment
off of
moneys
borrowed
by Local
Authorities.

22. The Local Authorities shall pay off all moneys borrowed by them on mortgage under the provisions of this Order either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by such instalments and partly by a sinking fund and the payment of the first instalment shall be made within twelve months if a yearly instalment or within six months if a half-yearly instalment after the date of borrowing the sum in respect of which it is made and the first payment to the sinking fund shall be made within twelve months after the date of borrowing the sum in respect of which it is made.

23.—(1) If the Local Authorities determine to repay by means of a sinking fund any moneys borrowed under this Order the sinking fund shall be formed and maintained either—

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Shoreham.
Sinking fund.

(a) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a "non-accumulating sinking fund"; or

(b) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations by way of compound interest at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called an "accumulating sinking fund."

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Local Authorities being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Local Authorities towards the equal annual payments to the fund.

(4) The Local Authorities may at any time apply the whole or any part of any sinking fund in or towards the discharge of the moneys for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Local Authorities shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by the sinking fund or the part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Local Authorities.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards such annual payments.

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(6) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Order shall be paid by the Local Authorities in addition to the payments provided for by this Order.

(7) If it appears to the Local Authorities at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with (in the case of an accumulating sinking fund) the probable accumulations thereon will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Local Authorities to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Local Authorities shall increase the payments to such extent as that Board may direct.

(8) If the Local Authorities desire to accelerate the repayment of any loan they may increase the amounts payable to the sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with (in the case of an accumulating sinking fund) the probable accumulations thereon will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Local Authorities may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as that Board approve.

(10) If the amount in any sinking fund at any time together with (in the case of an accumulating sinking fund) the probable accumulations thereon will in the opinion of the Local Government Board be sufficient without any further payments thereto to repay the loan in respect of which it is formed within the prescribed period the Local Authorities may with the consent of that Board discontinue the equal annual payments to such sinking fund until that Board otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Local Authorities with the consent of the Local Government Board may determine.

(12) For the purposes of this section "statutory security" means and includes any investment in which trustees are for the time being by statute authorised to invest trust money and any mortgage bond debenture or stock of any county council or municipal corporation or

other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Local Authorities.

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24.—(1) The respective town clerks of the said corporations and clerks of the said district councils as the case may be shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or paid to a sinking fund in pursuance of the provisions of this Order or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the said town clerks or clerks respectively showing for the year next preceding the making of such return or for such other period as the said Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of their failing to make such return the said town clerks or clerks shall respectively for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

Return as to
sinking fund
to be made
to Local
Government
Board.

(2) If it appears to the Local Government Board by the return to be made under this section or otherwise that the Local Authorities have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Order or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be

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Power of
Local Authorities to provide sums for fulfilment of guarantee performance of contract or repayment of moneys borrowed by them.

enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

25. The Local Authorities shall provide out of their respective borough funds or borough rates or district funds or general district rates or any of them as the case may be any sums from time to time required for the fulfilment of any guarantee or the performance of any contract given or entered into by them under the provisions of this Order or for the payment of interest or repayment of principal in respect of any moneys borrowed by them under the provisions of this Order or the maintenance of any sinking fund required to be formed by the provisions of this Order and shall from time to time raise and levy as part of such funds or rates such sums as may be necessary therefor.

Sums paid under guarantee or contract to be repaid.

26. All sums paid by the Local Authorities in pursuance of any guarantee or contract given or entered into by them under the provisions of subsection 1 (b) of the section of this Order of which the marginal note is "Power to Local Authorities to lend and guarantee" shall be repaid by the Trustees to the Local Authorities with interest at the rate of four pounds per centum per annum from the date of payment as soon as the resources of the Trustees will admit and in accordance with the priorities hereinbefore provided as if such sums were moneys borrowed by the Trustees under the provisions of this Order and any doubt or difference as to the time and amount of any such repayment shall on the application of the Local Authorities stand referred to and be determined by the Local Government Board whose determination shall be binding on the Trustees and the Local Authorities and final for all purposes.

Application of moneys paid by Trustees to Local Authorities.

27. All sums paid or repaid by the Trustees to the Local Authorities in respect of any guarantee or contract given or entered into by the Local Authorities under the provisions of this Order shall be paid into the respective borough funds or district funds as the case may be. All sums paid by the Trustees to the Local Authorities by way of interest on any loan by the Local Authorities to the Trustees shall be applied by the Local Authorities primarily in or towards the payment of interest on any money borrowed by the Local Authorities under the provisions of this Order and subject thereto shall be paid into the respective borough funds or district funds as the case may be. All sums paid by the Trustees to the Local Authorities by way of repayment of any loan by the Local Authorities to the Trustees shall be applied by the Local Authorities primarily in or towards the repayment of any money borrowed by the Local Authorities under the provisions of this Order and subject thereto shall be paid into the respective borough funds or district funds.

28.—(1) The Local Authorities shall have power—

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(a) to borrow for the purpose of paying off any moneys previously borrowed under this Order which are intended to be forthwith repaid ; or

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(b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Local Authorities in repaying moneys previously borrowed under this Order and which at the time of such repayment it was intended to replace by borrowed moneys.

Power to
Local Autho-
rities to
re-borrow.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Local Authorities shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Local Authorities shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(a) by instalments or annual payments ; or

(b) by means of a sinking fund ; or

(c) out of moneys derived from the sale of land ; or

(d) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

29. It shall be lawful for the Brighton Corporation on the one hand and the Local Authorities on the other hand to enter into and carry into effect agreements for all or any of the following purposes :—

Power to
Local Autho-
rities to
agree with
Brighton
Corporation
as to ad-
vances to
Trustees.

(1) To provide for the Brighton Corporation advancing on behalf of the Local Authorities to the Trustees any moneys which the Local Authorities are authorised by this Order to advance to the Trustees on such terms as to repayment of such moneys the payment of interest on the amount advanced the repayment to the Brighton Corporation of any sums in respect of sinking fund payments made by the Brighton Corporation in respect of moneys advanced by the Brighton Corporation on behalf of the Local Authorities and in respect of any other matters incidental or consequential on such

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advances being made on behalf of the Local Authorities as the Brighton Corporation and the Local Authorities may respectively agree :

- (2) For the purpose of securing the repayment to the Brighton Corporation of any moneys advanced on behalf of the Local Authorities under the provisions of subsection (1) of this section the Local Authorities may exercise all or any of the powers conferred by this Order on the Local Authorities in favour of the Brighton Corporation as if such advances had been moneys borrowed by the Local Authorities under the powers of this Order but the provisions contained in this Order as to repayment of moneys borrowed by the Local Authorities and as to sinking fund shall not apply in any such case.

Inquiries by
Local Govern-
ment Board.

30.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Order and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

(2) The Local Authorities shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

Amendments
of Acts of
1876 and
1887.

31. The Act of 1876 and the Act of 1887 shall as from the end of the year nineteen hundred and eighteen be hereby amended as follows :—

- (1) In section 52 of the Act of 1876 the words “during the month of July” shall be substituted for the words “on the first day of July (or if that day be a Sunday on the following day)” and the words “and such appointment shall take effect as from the end of such month of July” shall be added at the end of the section :
- (2) In section 54 of the Act of 1876 the words “during the month of July” shall be substituted for the words “on the first day of July (or if that day be a Sunday on the following day)” and the words “for the period of three years ensuing next after such month of July” shall be added at the end of the section :

(3) In section 58 of the Act of 1876 the words "thirty-first" shall be substituted for the word "first":

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(4) In section 62 of the Act of 1876 the words "during the month of August" shall be substituted for the words "on the third Tuesday in July":

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(5) In section 25 of the Act of 1887 the words "thirty-first" shall be substituted for the word "first":

(6) In section 27 of the Act of 1887 the words "during the month of July in every subsequent year of election" shall be substituted for the words "of every subsequent year of election (or if the first day of July be a Sunday then on the following day)."

32.--(1) Section 65 of the Act of 1876 is hereby repealed.

Appoint-
ment of an
auditor.

(2) The Board of Trade shall if they think fit appoint a person to be permanent auditor to examine and audit the accounts of the Trustees and shall fix the payments to be made to him for salary and for expenses (if any) and the amount of the salary and expenses (if any) shall be paid by the Trustees out of the harbour revenue.

(3) The Board of Trade may at any time revoke the appointment of any person as auditor and thereupon shall unless they see special reason to the contrary appoint another person as auditor.

(4) The Trustees shall on demand by the auditor produce to him all books accounts deeds papers writings and other documents and furnish him with all information in their possession or power and afford him all reasonable facilities for conducting the examination and audit.

(5) If the Trustees refuse or neglect to comply with any of the provisions of this section they shall be liable to a penalty not exceeding twenty pounds for every month during which they neglect or refuse so to comply.

33.--(1) The Trustees shall within one month after sending to the clerk of the peace the copy of their annual account in abstract send a copy of the same to the Board of Trade and the sixteenth section of the General Pier and Harbour Act 1861 Amendment Act shall apply to and include any such account.

Annual
account to
be sent to
Board of
Trade.
25 & 26 Vict.
c. 19.

(2) The Trustees shall as from the expiration of that month be liable to a penalty not exceeding twenty pounds for every week or part of a week during which they refuse or neglect to comply with this section.

(3) The account shall be made up to the end of the thirty-first day of March in each year.

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*Byelaws.**New*
Shoreham
Byelaws.

34.—(1) The byelaws which may from time to time be made by the Trustees in exercise of the power in that behalf conferred on them by the Act of 1816 and by section 83 of the Harbours Clauses Act 1847 may provide for imposing a penalty not exceeding forty shillings for the breach or non-observance of any of the byelaws.

(2) Notwithstanding any provision to the contrary contained in the Act of 1816 no byelaw shall come into operation until it has received the allowance and confirmation of the Board of Trade and that allowance and confirmation shall be sufficient for all purposes.

(3) Sections 84 and 85 of the Harbours Clauses Act 1847 shall not be incorporated with this Order.

*Life-saving Apparatus.*Provision for
life-saving
apparatus.

35.—(1) Sections 16 to 19 of the Harbours Clauses Act 1847 shall not be incorporated with this Order.

(2) The Trustees shall whenever required by the Board of Trade provide at their own expense and to the satisfaction of the Board of Trade a site on or near the harbour and build on that site a house or other proper accommodation for a lifeboat rocket apparatus and other life-saving apparatus.

(3) If the Trustees fail to comply with this section they shall be liable to a penalty not exceeding ten pounds for every month during which the failure continues.

Life-saving
apparatus
may be
attached
to harbour.

36. The officers of the coastguard and all other persons for the time being actually employed in connexion with the lifeboat or the apparatus for saving life may either permanently or temporarily without payment attach or cause to be attached to any part of the harbour spars and other apparatus for saving life and may also either in course of using or of exercising the apparatus for saving life fire rockets over the harbour.

Lifebuoys to
be kept.

37. The Trustees shall at all times keep at convenient places in the harbour and in obedience to any requirements which may be made by the Board of Trade lifebuoys and lifelines in good order and fit and ready for use.

As to buoys
and lights in
case of decay
of the har-
bour.

38. In case of injury to or destruction or decay of the harbour or any part thereof the Trustees shall lay down such buoys exhibit such lights or take such other means for preventing (as far as may be) danger to navigation as may from time to time be directed by the Corporation of Trinity House Deptford Strond and shall apply to that corporation for directions as to the means to be taken and the Trustees

shall be liable to a penalty not exceeding ten pounds for every calendar month during which they omit so to apply or refuse or neglect to obey any direction given in reference to the means to be taken.

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New
Shoreham.*Miscellaneous.*

39. For all the purposes of the Harbours Clauses Act 1847 this Order shall be deemed the special Act but sections 6 to 13 of the Harbours Clauses Act 1847 shall not be incorporated with this Order.

Application
of Act
10 & 11 Vict.
c. 27.

40. All penalties under this Order shall be recovered and applied as penalties are recoverable and applicable under the Harbours Clauses Act 1847.

Recovery of
penalties.

41. Officers of the Board of Trade and police officers acting in the execution of their duty shall at all times have free ingress passage and egress to along and from the harbour without payment.

Officers
exempt from
rates.

42. Nothing in this Order affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Trustees to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any lands hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

Saving rights
of Crown.

43. Notwithstanding the provisions contained in the section of this Order of which the marginal note is "Saving rights of Crown" or in any public statute His Majesty and His lessees for their respective interests may work any minerals belonging to the Crown under or adjacent to the lands and works of the Trustees but in the event of any such right being at any time intended to be exercised the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near the railway shall apply when the workings reach a point the distance of which from the nearest of such lands would not if measured horizontally exceed one half the depth of such workings below the surface level of such lands and in the application of those provisions the term "Company" shall mean the Trustees and the term "railway" shall mean the said lands and works.

Crown
minerals.

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*New
Shoreham.*
Costs of
Order.

44. All costs charges and expenses of and incident to the preparing and obtaining of this Order and otherwise incurred in reference thereto shall after taxation by the taxing officer of the House of Lords or of the House of Commons be paid by the Trustees out of moneys to be borrowed by the Trustees under the section of this Order the marginal note of which is "Power to borrow" or out of any funds at their disposal as such Trustees.

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